

THE
GREAT CONSPIRACY:

Its Origin and History.

BY
JOHN A. LOGAN.

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By

John Logan

Part 2.



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John A. Logan

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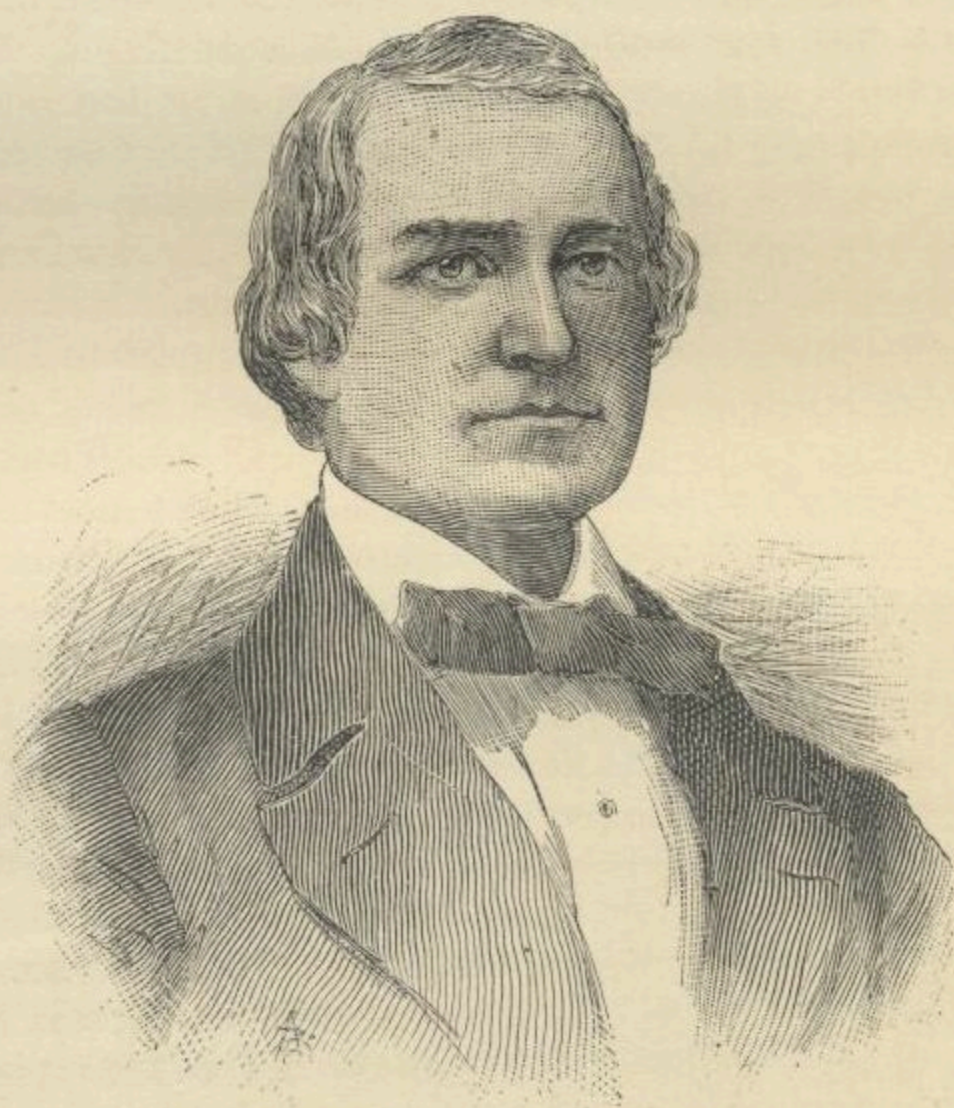
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CHAPTER VI.

THE GREAT CONSPIRACY MATURING.

The 6th of November, 1860, came and passed; on the 7th, the prevailing conviction that Lincoln would be elected had become a certainty, and before the close of that day, the fact had been heralded throughout the length and breadth of the Republic. The excitement of the People was unparalleled. The Republicans of the North rejoiced that at last the great wrong of Slavery was to be placed "where the People could rest in the belief that it was in the course of ultimate extinction!" The Douglas Democracy, naturally chagrined at the defeat of their great leader, were filled with gloomy forebodings touching the future of their Country; and the Southern Democracy, or at least a large portion of it, openly exulted that at last the long-wished-for opportunity for a revolt of the Slave Power, and a separation of the Slave from the Free States, was at hand. Especially in South Carolina were the "Fire-eating" Southrons jubilant over the event.

["South Carolina rejoiced over the election of Lincoln, with bonfires and processions." p. 172, Arnold's "Life of Abraham Lincoln."

"There was great joy in Charleston, and wherever 'Fire Eaters' most did congregate, on the morning of November 7th. Men rushed to shake hands and congratulate each other on the glad tidings of Lincoln's election. * * * Men thronged the streets, talking, laughing, cheering, like mariners long becalmed on a hateful, treacherous sea, whom a sudden breeze had swiftly wafted within sight of their longed-for haven." p. 332, vol. i., Greeley's American Conflict.]

Meanwhile any number of joint resolutions looking to the calling of a Secession Convention, were introduced in the South Carolina Legislature, sitting at Columbia, having in view Secession contingent upon the "cooperation" of the other Slave States, or looking to immediate and "unconditional" Secession.

On the evening of November 7th, Edmund Ruffin of Virginia—a Secession fanatic who had come from thence in hot haste—in response to a serenade, declared to the people of Columbia that: "The defense of the

South, he verily believed, was only to be secured through the lead of South Carolina;" that, "old as he was, he had come here to join them in that lead;" and that "every day delayed, was a day lost to the Cause." He acknowledged that Virginia was "not as ready as South Carolina;" but declared that "The first drop of blood spilled on the soil of South Carolina would bring Virginia, and every Southern State, with them." He thought "it was perhaps better that Virginia, and all other border States, remain quiescent for a time, to serve as a guard against the North. * * * By remaining in the Union for a time, she would not only prevent coercive legislation in Congress, but any attempt for our subjugation."

That same evening came news that, at Charleston, the Grand Jury of the United States District Court had refused to make any presentments, because of the Presidential vote just cast, which, they said, had "swept away the last hope for the permanence, for the stability, of the Federal Government of these Sovereign States;" and that United States District Judge Magrath had resigned his office, saying to the Grand Jury, as he did so: "In the political history of the United States, an event has happened of ominous import to fifteen Slave-holding States. The State of which we are citizens has been always understood to have deliberately fixed its purpose whenever that event should happen. Feeling an assurance of what will be the action of the State, I consider it my duty, without delay, to prepare to obey its wishes. That preparation is made by the resignation of the office I have held."

The news of the resignations of the Federal Collector and District Attorney at Charleston, followed, with an intimation that that of the Sub-Treasurer would soon be forthcoming. On November 9th, a joint resolution calling an unconditional Secession Convention to meet at Columbia December 17th, was passed by the Senate, and on the 12th of November went through the House; and both of the United States Senators from South Carolina had now resigned their seats in the United States Senate.

Besides all these and many other incitements to Secession was the fact that at Milledgeville, Georgia, Governor Brown had, November 12th, addressed a Georgian Military Convention, affirming "the right of Secession, and the duty of other Southern States to sustain South Carolina in the step she was then taking," and declaring that he "would like to see Federal troops dare attempt the coercion of a seceding Southern State! For

every Georgian who fell in a conflict thus incited, the lives of two Federal Soldiers should expiate the outrage on State Sovereignty"—and that the Convention aforesaid had most decisively given its voice for Secession.

It was about this time, however, that Alexander H. Stephens vainly sought to stem the tide of Secession in his own State, in a speech (November 14) before the Georgia Legislature, in which he declared that Mr. Lincoln "can do nothing unless he is backed by power in Congress. The House of Representatives is largely in the majority against him. In the Senate he will also be powerless. There will be a majority of four against him." He also cogently said: "Many of us have sworn to support it (the Constitution). Can we, therefore, for the mere election of a man to the Presidency—and that too, in accordance with the prescribed forms of the Constitution—make a point of resistance to the Government, and, without becoming the breakers of that sacred instrument ourselves, withdraw ourselves from it? Would we not be in the wrong?"

But the occasional words of wisdom that fell from the lips of the few far-seeing statesmen of the South, were as chaff before the storm of Disunion raised by the turbulent Fire-eaters, and were blown far from the South, where they might have done some good for the Union cause, away up to the North, where they contributed to aid the success of the contemplated Treason and Rebellion, by lulling many of the people there, into a false sense of security. Unfortunately, also, even the ablest of the Southern Union men were so tainted with the heretical doctrine of States-Rights, which taught the "paramount allegiance" of the citizen to the State, that their otherwise powerful appeals for the preservation of the Union were almost invariably handicapped by the added protestation that in any event—and however they might deplore the necessity—they would, if need be, go with their State, against their own convictions of duty to the National Union.

Hence in this same speech we find that Mr. Stephens destroyed the whole effect of his weighty and logical appeal against Secession from the Union, by adding to it, that, "Should Georgia determine to go out of the Union I shall bow to the will of her people. Their cause is my cause, and their destiny is my destiny; and I trust this will be the ultimate course of all."—and by further advising the calling of a Convention of the people to decide the matter; thus, in advance, as it were, binding himself hand and foot,

despite his previous Union utterances, to do the fell bidding of the most rampant Disunionists. And thus, in due time, it befell, as we shall see, that this "saving clause" in his "Union speech," brought him at the end, not to that posture of patriotic heroism to which he aspired when he adjured his Georgian auditors to "let us be found to the last moment standing on the deck (of the Republic), with the Constitution of the United States waving over our heads," but to that of an imprisoned traitor and defeated rebel against the very Republic and Constitution which he had sworn to uphold and defend!

The action of the South Carolina Legislature in calling an Unconditional Secession Convention, acted among the Southern States like a spark in a train of gunpowder. Long accustomed to incendiary resolutions of Pro-Slavery political platforms, as embodying the creed of Southern men; committed by those declarations to the most extreme action when, in their judgment, the necessity should arise; and worked up during the Presidential campaign by swarming Federal officials inspired by the fanatical Secession leaders; the entire South only needed the spark from the treasonable torch of South Carolina, to find itself ablaze, almost from one end to the other, with the flames of revolt.

Governor after Governor, in State after State, issued proclamation after proclamation, calling together their respective Legislatures, to consider the situation and whether their respective States should join South Carolina in seceding from the Union. Kentucky alone, of them all, seemed for a time to keep cool, and look calmly and reasonably through the Southern ferment to the horrors beyond. In an address issued by Governor Magoffin of that State, to the people, he said:

"To South Carolina and such other States as may wish to secede from the Union, I would say: The geography of this Country will not admit of a division; the mouth and sources of the Mississippi River cannot be separated without the horrors of Civil War. We cannot sustain you in this movement merely on account of the election of Mr. Lincoln. Do not precipitate by premature action into a revolution or Civil War, the consequences of which will be most frightful to all of us. It may yet be avoided. There is still hope, faint though it be. Kentucky is a Border State, and has suffered more than all of you. * * * She has a right to claim that her

voice, and the voice of reason, and moderation and patriotism shall be heard and heeded by you. If you secede, your representatives will go out of Congress and leave us at the mercy of a Black Republican Government. Mr. Lincoln will have no check. He can appoint his Cabinet, and have it confirmed. The Congress will then be Republican, and he will be able to pass such laws as he may suggest. The Supreme Court will be powerless to protect us. We implore you to stand by us, and by our friends in the Free States; and let us all, the bold, the true, and just men in the Free and Slave States, with a united front, stand by each other, by our principles, by our rights, our equality, our honor, and by the Union under the Constitution. I believe this is the only way to save it; and we can do it."

But this "still small voice" of conscience and of reason, heard like a whisper from the mouths of Stephens in Georgia, and Magoffin in Kentucky, was drowned in the clamor and tumult of impassioned harangues and addresses, and the drumming and tramp of the "minute men" of South Carolina, and other military organizations, as they excitedly prepared throughout the South for the dread conflict at arms which they recklessly invited, and savagely welcomed.

We have seen how President Andrew Jackson some thirty years before, had stamped out Nullification and Disunion in South Carolina, with an iron heel.

But a weak and feeble old man—still suffering from the effects of the mysterious National Hotel poisoning—was now in the Executive Chair at the White House. Well-meaning, doubtless, and a Union man at heart, his enfeebled intellect was unable to see, and hold firm to, the only true course. He lacked clearness of perception, decision of character, and nerve. He knew Secession was wrong, but allowed himself to be persuaded that he had no Constitutional power to prevent it. He had surrounded himself in the Cabinet with such unbending adherents and tools of the Slave-Power, as Howell Cobb of Georgia, his Secretary of the Treasury, John B. Floyd of Virginia, as Secretary of War, Jacob Thompson of Mississippi, as Secretary of the Interior, and Isaac Toucy of Connecticut, as Secretary of the Navy, before whose malign influence the councils of Lewis Cass of Michigan, the Secretary of State, and other Union men, in and out of the Cabinet, were quite powerless.

When, therefore, the Congress met (December 3, 1860) and he transmitted to it his last Annual Message, it was found that, instead of treating Secession from the Jacksonian standpoint, President Buchanan feebly wailed over the threatened destruction of the Union, weakly apologized for the contemplated Treason, garrulously scolded the North as being to blame for it, and, while praying to God to "preserve the Constitution and the Union throughout all generations," wrung his nerveless hands in despair over his own powerlessness—as he construed the Constitution—to prevent Secession! Before writing his pitifully imbecile Message, President Buchanan had secured from his Attorney-General (Jeremiah S. Black of Pennsylvania) an opinion, in which the latter, after touching upon certain cases in which he believed the President would be justified in using force to sustain the Federal Laws, supposed the case of a State where all the Federal Officers had resigned and where there were neither Federal Courts to issue, nor officers to execute judicial process, and continued: "In that event, troops would certainly be out of place, and their use wholly illegal. If they are sent to aid the Courts and Marshals there must be Courts and Marshals to be aided. Without the exercise of these functions, which belong exclusively to the civil service, the laws cannot be executed in any event, no matter what may be the physical strength which the Government has at its command. Under such circumstances, to send a military force into any State, with orders to act against the people, would be simply making War upon them."

Resting upon that opinion of Attorney-General Black, President Buchanan, in his Message, after referring to the solemn oath taken by the Executive "to take care that the laws be faithfully executed," and stating that there were now no longer any Federal Officers in South Carolina, through whose agency he could keep that oath, took up the laws of February 28, 1795, and March 3, 1807, as "the only Acts of Congress on the Statute-book bearing upon the subject," which "authorize the President, after he shall have ascertained that the Marshal, with his posse comitatus, is unable to execute civil or criminal process in any particular case, to call out the Militia and employ the Army and Navy to aid him in performing this service, having first, by Proclamation, commanded the insurgents to 'disperse and retire peaceably to their respective abodes, within a limited time'"—and thereupon held that "This duty cannot, by possibility, be

performed in a State where no judicial authority exists to issue process, and where there is no Marshal to execute it; and where even if there were such an officer, the entire population would constitute one solid combination to resist him." And, not satisfied with attempting to show as clearly as he seemed to know how, his own inability under the laws to stamp out Treason, he proceeded to consider what he thought Congress also could not do under the Constitution. Said he: "The question fairly stated, is: Has the Constitution delegated to Congress the power to coerce into submission a State which is attempting to withdraw, or has actually withdrawn, from the Confederacy? If answered in the affirmative, it must be on the principle that the power has been conferred upon Congress to declare and make War against a State. After much serious reflection, I have arrived at the conclusion that no such power has been delegated to Congress or to any other department of the Federal Government." And further: "Congress possesses many means of preserving it (the Union) by conciliation; but the sword was not placed in their hands to preserve it by force."

Thus, in President Buchanan's judgment, while, in another part of his Message, he had declared that no State had any right, Constitutional or otherwise, to Secede from that Union, which was designed for all time—yet, if any State concluded thus wrongfully to Secede, there existed no power in the Union, by the exercise of force, to preserve itself from instant dissolution! How imbecile the reasoning, how impotent the conclusion, compared with that of President Jackson, thirty years before, in his Proclamation against Nullification and Secession, wherein that sturdy patriot declared to the South Carolinians. that "compared to Disunion, all other evils are light, because that brings with it an accumulation of all;" that "Disunion by armed force, is Treason;" and that he was determined "to execute the Laws," and "to preserve the Union!"

President Buchanan's extraordinary Message—or so much of it as related to the perilous condition of the Union—was referred, in the House of Representatives, to a Select Committee of Thirty-three, comprising one member from each State, in which there was a very large preponderance of such as favored Conciliation without dishonor. But the debates in both Houses, in which the most violent language was indulged by the Southern Fire-eaters, as well as other events, soon proved that there was a settled

purpose on the part of the Slave-Power and its adherents to resist and spit upon all attempts at placation.

In the Senate also (December 5), a Select Committee of Thirteen was appointed, to consider the impending dangers to the Union, comprising Senators Powell of Kentucky, Hunter of Virginia, Crittenden of Kentucky, Seward of New York, Toombs of Georgia, Douglas of Illinois, Collamer of Vermont, Davis of Mississippi, Wade of Ohio, Bigler of Pennsylvania, Rice of Minnesota, Doolittle of Wisconsin, and Grimes of Iowa. Their labors were alike without practical result, owing to the irreconcilable attitude of the Southrons, who would accept nothing less than a total repudiation by the Republicans of the very principles upon which the recent Presidential contest had by them been fought and won. Nor would they even accept such a repudiation unless carried by vote of the majority of the Republicans. The dose that they insisted upon the Republican Party swallowing must not only be as noxious as possible, but must absolutely be mixed by that Party itself, and in addition, that Party must also go down on its knees, and beg the privilege of so mixing and swallowing the dose! That was the impossible attitude into which, by their bullying and threats, the Slave Power hoped to force the Republican Party—either that or "War."

Project after project in both Houses of Congress looking to Conciliation was introduced, referred, reported, discussed, and voted on or not, as the case might be, in vain. And in the meantime, in New York, in Philadelphia, and elsewhere in the North, the timidity of Capital showed itself in great Conciliation meetings, where speeches were applauded and resolutions adopted of the most abject character, in behalf of "Peace, at any price," regardless of the sacrifice of honor and principles and even decency. In fact the Commercial North, with supplicating hands and beseeching face, sank on its knees in a vain attempt to propitiate its furious creditor, the South, by asking it not only to pull its nose, but to spit in its face, both of which it humbly and even anxiously offered for the purpose!*

[Thus, in Philadelphia, December 13, 1860, at a great meeting held at the call of the Mayor, in Independence Square, Mayor Henry led off the speaking—which was nearly all in the same line—by saying: "I tell you that if in any portion of our Confederacy, sentiments have been entertained and cherished which are inimical to the civil rights and social institutions of any other portion, those sentiments should be relinquished." Another speaker, Judge George W. Woodward, sneeringly asked: "Whence came these excessive sensibilities that cannot bear a few slaves in a remote

Territory until the white people establish a Constitution?" Another, Mr. Charles E. Lex (a Republican), speaking of the Southern People, said: "What, then, can we say to them? what more than we have expressed in the resolutions we have offered? If they are really aggrieved by any laws upon our Statute-books opposed to their rights—if upon examination any such are found to be in conflict with the Constitution of these United States—nay, further, if they but serve to irritate our brethren of the South, whether Constitutional or not, I, for one, have no objection that they should instantly be repealed." Another said, "Let us repeal our obnoxious Personal Liberty bills * * *; let us receive our brother of the South, if he will come among us for a little time, attended by his servant, and permit him thus to come." And the resolutions adopted were even still more abject in tone than the speeches.]

But the South at present was too busy in perfecting its long-cherished plans for the disruption of the Union, to more than grimly smile at this evidence of what it chose to consider "a divided sentiment" in the North. While it weakened the North, it strengthened the South, and instead of mollifying the Conspirators against the Union, it inspired them with fresh energy in their fell purpose to destroy it.

The tone of the Republican press, too, while more dignified, was thoroughly conciliatory. The Albany Evening Journal,—[November 30, 1860]—the organ of Governor Seward, recognizing that the South, blinded by passion, was in dead earnest, but also recognizing the existence of "a Union sentiment there, worth cherishing," suggested "a Convention of the People, consisting of delegates appointed by the States, in which it would not be found unprofitable for the North and South, bringing their respective griefs, claims, and proposed reforms, to a common arbitrament, to meet, discuss, and determine upon a future"—before a final appeal to arms. So, too, Horace Greeley, in the New York Tribune,—[November 9, 1860.]—after weakly conceding, on his own part, the right of peaceable Secession, said: "But while we thus uphold the practical liberty, if not the abstract right, of Secession, we must insist that the step be taken, if it ever shall be, with the deliberation and gravity befitting so momentous an issue. Let ample time be given for reflection; let the subject be fully canvassed before the People; and let a popular vote be taken in every case, before Secession is decreed." Other leading papers of the Northern press, took similar ground for free discussion and conciliatory action.

In the Senate, as well as the House of Representatives—as also was shown by the appointment, heretofore mentioned, of Select Committees to consider the gravity of the situation, and suggest a remedy—the same spirit

of Conciliation and Concession, and desire for free and frank discussion, was apparent among most of the Northern and Border-State members of those Bodies. But these were only met by sneers and threats on the part of the Fire-eating Secession members of the South. In the Senate, Senator Clingman of North Carolina, sneeringly said: "They want to get up a free debate, as the Senator (Mr. Seward) from New York expressed it, in one of his speeches. But a Senator from Texas told me the other day that a great many of these free debaters were hanging from the trees of that country;" and Senator Iverson, of Georgia, said: "Gentlemen speak of Concession, of the repeal of the Personal Liberty bills. Repeal them all to-morrow, and you cannot stop this revolution." After declaring his belief that "Before the 4th of March, five States will have declared their independence" and that "three other States will follow as soon as the action of the people can be had;" he proceeded to allude to the refusal of Governor Houston of Texas to call together the Texas Legislature for action in accord with the Secession sentiment, and declared that "if he will not yield to that public sentiment, some Texan Brutus will arise to rid his country of this hoary-headed incubus that stands between the people and their sovereign will!" Then, sneering at the presumed cowardice of the North, he continued: "Men talk about their eighteen millions (of Northern population); but we hear a few days afterwards of these same men being switched in the face, and they tremble like sheep-stealing dogs! There will be no War. The North, governed by such far-seeing Statesmen as the Senator (Mr. Seward) from New York, will see the futility of this. In less than twelve months, a Southern Confederacy will be formed; and it will be the most successful Government on Earth. The Southern States, thus banded together, will be able to resist any force in the World. We do not expect War; but we will be prepared for it—and we are not a feeble race of Mexicans either."

On the other hand, there were Republicans in that Body who sturdily met the bluster of the Southern Fire-eaters with frank and courageous words expressing their full convictions on the situation and their belief that Concessions could not be made and that Compromises were mere waste paper. Thus, Senator Ben Wade of Ohio, among the bravest and manliest of them all, in a speech in the Senate, December 17, the very day on which the South Carolina Secession Convention was to assemble, said to the Fire-eaters: "I tell you frankly that we did lay down the principle in our platform,

that we would prohibit, if we had the power, Slavery from invading another inch of the Free Soil of this Government. I stand to that principle to-day. I have argued it to half a million of people, and they stand by it; they have commissioned me to stand by it; and, so help me God, I will! * * * On the other hand, our platform repudiates the idea that we have any right, or harbor any ultimate intention to invade or interfere with your institutions in your own States. * * * It is not, by your own confessions, that Mr. Lincoln is expected to commit any overt act by which you may be injured. You will not even wait for any, you say; but, by anticipating that the Government may do you an injury, you will put an end to it—which means, simply and squarely, that you intend to rule or ruin this Government. * * * As to Compromises, I supposed that we had agreed that the Day of Compromises was at an end. The most solemn we have made have been violated, and are no more. * * * We beat you on the plainest and most palpable issue ever presented to the American people, and one which every man understood; and now, when we come to the Capital, we tell you that our candidates must and shall be inaugurated—must and shall administer this Government precisely as the Constitution prescribes. * * * I tell you that, with that verdict of the people in my pocket, and standing on the platform on which these candidates were elected, I would suffer anything before I would Compromise in any way."

In the House of Representatives, on December 10, 1860, a number of propositions looking to a peaceful settlement of the threatened danger, were offered and referred to the Select Committee of Thirty-three. On the following Monday, December 17, by 154 yeas to 14 nays, the House adopted a resolution, offered by Mr. Adrian of New Jersey, in these words:

"Resolved, That we deprecate the spirit of disobedience to the Constitution, wherever manifested; and that we earnestly recommend the repeal of all Statutes by the State Legislatures in conflict with, and in violation of, that sacred instrument, and the laws of Congress passed in pursuance thereof."

On the same day, the House adopted, by 135 yeas to no nays, a resolution offered by Mr. Lovejoy of Illinois, in these words:

"Whereas, The Constitution of the United States is the Supreme law of the Land, and ready and faithful obedience to it a duty of all good and law-abiding citizens; Therefore:

"Resolved, That we deprecate the spirit of disobedience to the Constitution, wherever manifested; and that we earnestly recommend the repeal of all Nullification laws; and that it is the duty of the President of the United States to protect and defend the property of the United States."

[This resolution, before adoption, was modified by declaring it to be the duty of all citizens, whether "good and law abiding" or not, to yield obedience to the Constitution, as will be seen by referring to the proceedings in the Globe of that date, where the following appears:

"Mr. LOGAN. I hope there will be no objection on this side of the House to the introduction of the [Lovejoy] resolution. I can see no difference myself, between this resolution and the one [Adrian's] just passed, except in regard to verbiage. I can find but one objection to the resolution, and that is in the use of the words declaring that all 'law abiding' citizens should obey the Constitution. I think that all men should do so.

"Mr. LOVEJOY. I accept the amendment suggested by my Colleague.

"Mr. LOGAN. It certainly should include members of Congress; but if it is allowed to remain all 'good and law abiding' citizens, I do not think it will include them. [Laughter.]

"The resolution was modified by the omission of those words."]

It also adopted, by 115 yeas to 44 nays, a resolution offered by Mr. Morris of Illinois, as follows:

"Resolved by the House of Representatives: That we properly estimate the immense value of our National Union to our collective and individual happiness; that we cherish a cordial, habitual, and immovable attachment to it; that we will speak of it as the palladium of our political safety and prosperity; that we will watch its preservation with jealous anxiety; that we will discountenance whatever may suggest even a suspicion that it can, in any event, be abandoned, and indignantly frown upon the first dawning of every attempt to alienate any portion of our Country from the rest, or enfeeble the sacred ties which now link together the various parts; that we regard it as a main pillar in the edifice of our real independence, the support of tranquillity at home, our peace abroad, our safety, our prosperity, and that very liberty which we so highly prize; that we have seen nothing in the past,

nor do we see anything in the present, either in the election of Abraham Lincoln to the Presidency of the United States, or from any other existing cause, to justify its dissolution; that we regard its perpetuity as of more value than the temporary triumph of any Party or any man; that whatever evils or abuses exist under it ought to be corrected within the Union, in a peaceful and Constitutional way; that we believe it has sufficient power to redress every wrong and enforce every right growing out of its organization, or pertaining to its proper functions; and that it is a patriotic duty to stand by it as our hope in Peace and our defense in War."



WM. H. SEWARD.

CHAPTER VII.

SECESSION ARMING.

While Congress was encouraging devotion to the Union, and its Committees striving for some mode by which the impending perils might be averted without a wholesale surrender of all just principles, the South Carolina Convention met (December 17, 1860) at Columbia, and after listening to inflammatory addresses by commissioners from the States of Alabama and Mississippi, urging immediate and unconditional Secession, unanimously and with "tremendous cheering" adopted a resolution: "That it is the opinion of the Convention that the State of South Carolina should forthwith Secede from the Federal Union, known as the United States of America,"—and then adjourned to meet at Charleston, South Carolina.

The next day, and following days, it met there, at "Secession Hall," listening to stimulating addresses, while a committee of seven worked upon the Ordinance of Secession. Among the statements made by orators, were several clear admissions that the rebellious Conspiracy had existed for very many years, and that Mr. Lincoln's election was simply the long-sought-for pretext for Rebellion. Mr. Parker said: "It is no spasmodic effort that has come suddenly upon us; it has been gradually culminating for a long period of thirty years. At last it has come to that point where we may say, the matter is entirely right." Mr. Inglis said: "Most of us have had this matter under consideration for the last twenty years; and I presume that we have by this time arrived at a decision upon the subject." Mr. Keitt said: "I have been engaged in this movement ever since I entered political life; * * * we have carried the body of this Union to its last resting place, and now we will drop the flag over its grave." Mr. Barnwell Rhett said: "The Secession of South Carolina is not an event of a day. It is not anything produced by Mr. Lincoln's election, or by the non-execution of the Fugitive Slave Law. It has been a matter which has been gathering head for thirty years." Mr. Gregg said: "If we undertake to set forth all the causes, do we not dishonor the

memory of all the statesmen of South Carolina, now departed, who commenced forty years ago a war against the tariff and against internal improvement, saying nothing of the United States Bank, and other measures which may now be regarded as obsolete."

On the 20th of December, 1860—the fourth day of the sittings—the Ordinance of Secession was reported by the Committee, and was at once unanimously passed, as also was a resolution that "the passage of the Ordinance be proclaimed by the firing of artillery and ringing of the bells of the city, and such other demonstrations as the people may deem appropriate on the passage of the great Act of Deliverance and Liberty;" after which the Convention jubilantly adjourned to meet, and ratify, that evening. At the evening session of this memorable Convention, the Governor and Legislature attending, the famous Ordinance was read as engrossed, signed by all the delegates, and, after announcement by the President that "the State of South Carolina is now and henceforth a Free and Independent Commonwealth;" amid tremendous cheering, the Convention adjourned. This, the first Ordinance of Secession passed by any of the Revolving States, was in these words:

"An Ordinance to dissolve the Union between the State of South Carolina and other States united with her, under the compact entitled the 'Constitution of the United States of America.'

"We the people of the State of South Carolina in Convention assembled, do declare and ordain, and it is hereby declared and ordained, that the Ordinance adopted by us in Convention on the 23rd day of May, in the year of our Lord 1788, whereby the Constitution of the United States of America was ratified, and also all Acts and parts of Acts of the General Assembly of this State ratifying the amendments of the said Constitution, are hereby repealed; and that the Union now subsisting between South Carolina and other States, under the name of the United States of America, is hereby dissolved."

Thus, and in these words, was joyously adopted and ratified, that solemn Act of Separation which was doomed to draw in its fateful train so many other Southern States, in the end only to be blotted out with the blood of

hundreds of thousands of their own brave sons, and their equally courageous Northern brothers.

State after State followed South Carolina in the mad course of Secession from the Union. Mississippi passed a Secession Ordinance, January 9, 1861. Florida followed, January 10th; Alabama, January 11th; Georgia, January 18th; Louisiana, January 26th; and Texas, February 1st; Arkansas, North Carolina, and Virginia held back until a later period; while Kentucky, Tennessee, Missouri, Maryland, and Delaware, abstained altogether from taking the fatal step, despite all attempts to bring them to it.

In the meantime, however, South Carolina had put on all the dignity of a Sovereign and Independent State. Her Governor had a "cabinet" comprising Secretaries of State, War, Treasury, the Interior, and a Postmaster General. She had appointed Commissioners, to proceed to the other Slave-holding States, through whom a Southern Congress was proposed, to meet at Montgomery, Alabama; and had appointed seven delegates to meet the delegates from such other States in that proposed Southern Congress. On the 21st of December, 1860, three Commissioners (Messrs. Barnwell, Adams, and Orr) were also appointed to proceed to Washington, and treat for the cession by the United States to South Carolina, of all Federal property within the limits of the latter. On the 24th, Governor Pickens issued a Proclamation announcing the adoption of the Ordinance of Secession, declaring "that the State of South Carolina is, as she has a right to be, a separate sovereign, free and independent State, and as such, has a right to levy war, conclude peace, negotiate treaties, leagues or covenants, and to do all acts whatsoever that rightfully appertain to a free and independent State;" the which proclamation was announced as "Done in the eighty-fifth year of the Sovereignty and Independence of South Carolina." On the same day (the Senators from that State in the United States Senate having long since, as we have seen, withdrawn from that body) the Representatives of South Carolina in the United States House of Representatives withdrew.

Serious dissensions in the Cabinet of President Buchanan, were now rapidly disintegrating the "official family" of the President. Lewis Cass, the Secretary of State, disgusted with the President's cowardice and weakness, and declining to be held responsible for Mr. Buchanan's promise not to

reinforce the garrisons of the National Forts, under Major Anderson, in Charleston harbor, retired from the Cabinet December 12th—Howell Cobb having already, "because his duty to Georgia required it," resigned the Secretaryship of the Treasury, and left it bankrupt and the credit of the Nation almost utterly destroyed.

On the 26th of December, Major Anderson evacuated Fort Moultrie, removing all his troops and munitions of war to Fort Sumter—whereupon a cry went up from Charleston that this was in violation of the President's promise to take no step looking to hostilities, provided the Secessionists committed no overt act of Rebellion, up to the close of his fast expiring Administration. On the 29th, John B. Floyd, Secretary of War, having failed to secure the consent of the Administration to an entire withdrawal of the Federal garrison from the harbor of Charleston, also resigned, and the next day—he having in the meantime escaped in safety to Virginia—was indicted by the Grand Jury at Washington, for malfeasance and conspiracy to defraud the Government in the theft of \$870,000 of Indian Trust Bonds from the Interior Department, and the substitution therefor of Floyd's acceptances of worthless army-transportation drafts on the Treasury Department.

Jacob Thompson, Secretary of the Interior, also resigned, January 8th, 1861, on the pretext that "additional troops, he had heard, have been ordered to Charleston" in the "Star of the West."—[McPherson's History of the Rebellion, p. 28.]

Several changes were thus necessitated in Mr. Buchanan's cabinet, by these and other resignations, so that by the 18th of January, 1861, Jeremiah S. Black was Secretary of State; General John A. Dix, Secretary of the Treasury; Joseph Holt, Secretary of War; Edwin M. Stanton, Attorney General; and Horatio King, Postmaster General. But before leaving the Cabinet, the conspiring Southern members of it, and their friends, had managed to hamstring the National Government, by scattering the Navy in other quarters of the World; by sending the few troops of the United States to remote points; by robbing the arsenals in the Northern States of arms and munitions of war, so as to abundantly supply the Southern States at the critical moment; by bankrupting the Treasury and shattering the public credit of the Nation; and by other means no less nefarious. Thus swindled,

betrayed, and ruined, by its degenerate and perfidious sons, the imbecile Administration stood with dejected mien and folded hands helplessly awaiting the coming catastrophe.

On December 28th, 1860, the three Commissioners of South Carolina having reached Washington, addressed to the President a communication, in which—after reciting their powers and duties, under the Ordinance of Secession, and stating that they had hoped to have been ready to proceed to negotiate amicably and without "hostile collision," but that "the events—[The removal, to Fort Sumter, of Major Anderson's command, and what followed.]—of the last twenty-four hours render such an assurance impossible"—they declared that the troops must be withdrawn from Charleston harbor, as "they are a standing menace which render negotiation impossible," threatening speedily to bring the questions involved, to "a bloody issue."

To this communication Mr. Buchanan replied at considerable length, December 30th, in an apologetic, self-defensive strain, declaring that the removal by Major Anderson of the Federal troops under his command, from Fort Moultrie to Fort Sumter was done "upon his own responsibility, and without authority," and that he (the President) "had intended to command him to return to his former position," but that events had so rapidly transpired as to preclude the giving of any such command;

[The seizure by the Secessionists, under the Palmetto Flag, of Castle Pinckney and Fort Moultrie; the simultaneous raising of that flag over the Federal Custom House and Post Office at Charleston; the resignation of the Federal Collector, Naval Officer and Surveyor of that Port—all of which occurred December 27th; and the seizure "by force of arms," December 30th, of the United States Arsenal at that point.]

and concluding, with a very slight stiffening of backbone, by saying: "After this information, I have only to add that, whilst it is my duty to defend Fort Sumter as a portion of the public property of the United States against hostile attacks, from whatever quarter they may come, by such means as I may possess for this purpose, I do not perceive how such a defense can be construed into a menace against the city of Charleston." To this reply of the President, the Commissioners made rejoinder on the 1st of January, 1861; but the President "declined to receive" the communication.

From this time on, until the end of President Buchanan's term of office, and the inauguration of Mr. Lincoln as President, March 4th, 1861, events crowded each other so hurriedly, that the flames of Rebellion in the South were continually fanned, while the public mind in the North was staggered and bewildered, by them.

On January 2nd, prior to the Secession of Georgia, Forts Pulaski and Jackson, commanding Savannah, and the Federal Arsenal at Augusta, Georgia, with two 12 pound howitzers, two cannon, 22,000 muskets and rifles, and ammunition in quantity, were seized by Rebel militia. About the same date, although North Carolina had not seceded, her Governor (Ellis) seized the Federal Arsenal at Fayetteville, Fort Macon, and other fortifications in that State, "to preserve them" from mob-seizure.

January 4th, anticipating Secession, Alabama State troops seized Fort Morgan, with 5,000 shot and shell, and Mount Vernon Arsenal at Mobile, with 2,000 stand of arms, 150, 000 pounds of powder, some pieces of cannon, and a large quantity of other munitions of war. The United States Revenue cutter, "Lewis Cass," was also surrendered to Alabama.

On the 5th, the Federal steamer "Star of the West," with reinforcements and supplies for Fort Sumter, left New York in the night—and Secretary Jacob Thompson notified the South Carolina Rebels of the fact.

On the 9th, the "Star of the West" appeared off Charleston bar, and while steaming toward Fort Sumter, was fired upon by Rebel batteries at Fort Moultrie and Morris Island, and struck by a shot, whereupon she returned to New York without accomplishing her mission. That day the State of Mississippi seceded from the Union.

On the 10th, the Federal storeship "Texas," with Federal guns and stores, was seized by Texans. On the same day Florida seceded.

On the 11th, Forts Jackson and St. Philip, commanding the mouth of the Mississippi River, and Fort Pike, dominating Lake Pontchartrain, were seized by Louisiana troops; also the Federal Arsenal at Baton Rouge, with 50,000 small arms, 4 howitzers, 20 heavy pieces of ordnance, 2 batteries, 300 barrels of powder, and other stores. The State of Alabama also seceded the same day.

On the 12th—Fort Marion, the coast surveying schooner "Dana," the Arsenal at St. Augustine, and that on the Chattahoochee, with 500,000 musket cartridges, 300,000 rifle cartridges and 50,000 pounds of powder, having previously been seized—Forts Barrancas and McRae, and the Navy Yard at Pensacola, were taken by Rebel troops of Florida, Alabama and Mississippi. On the same day, Colonel Hayne, of South Carolina, arrived at Washington as Agent or Commissioner to the National Government from Governor Pickens of that State.

On the 14th, the South Carolina Legislature resolved "that any attempt by the Federal Government to reinforce Fort Sumter will be regarded as an act of open hostility, and a Declaration of War."

On the 16th, Colonel Hayne, of South Carolina, developed his mission, which was to demand of the President the surrender of Fort Sumter to the South Carolina authorities—a demand that had already been made upon, and refused by, Major Anderson.

The correspondence concerning this demand, between Colonel Hayne and ten Southern United States Senators;—[Senators Wigfall, Hemphill, Yulee, Mallory, Jeff. Davis, C. C. Clay, Fitzgerald, Iverson, Slidell, and Benjamin.]—the reply of the President, by Secretary Holt, to those Senators; Governor Pickens's review of the same; and the final demand; consumed the balance of the month of January; and ended, February 6th, in a further reply, through the Secretary of War, from the President, asserting the title of the United States to that Fort, and declining the demand, as "he has no Constitutional power to cede or surrender it." Secretary Holt's letter concluded by saying: "If, with all the multiplied proofs which exist of the President's anxiety for Peace, and of the earnestness with which he has pursued it, the authorities of that State shall assault Fort Sumter, and peril the lives of the handful of brave and loyal men shut up within its walls, and thus plunge our Common Country into the horrors of Civil War, then upon them and those they represent, must rest the responsibility."

But to return from this momentary diversion: On the 18th of January, Georgia seceded; and on the 20th, the Federal Fort at Ship Island, Mississippi, and the United States Hospital on the Mississippi River were seized by Mississippi troops.

On the 26th, Louisiana seceded. On the 28th, Louisiana troops seized all the quartermaster's and commissary stores held by Federal officials; and the United States Revenue cutter "McClelland" surrendered to the Rebels.

On February 1st, the Louisiana Rebels seized the National Mint and Custom House at New Orleans, with \$599,303 in gold and silver. On the same day the State of Texas seceded.

On February 8th, the National Arsenal at Little Rock, Arkansas, with 9,000 small arms, 40 cannon, and quantities of ammunition, was seized; and the same day the Governor of Georgia ordered the National Collector of the Port of Savannah to retain all collections and make no further payments to the United States Government.*

[It was during this eventful month that, certain United States troops having assembled at the National Capital, and the House of Representatives having asked the reason therefor, reply was made by the Secretary of War as follows:

"WAR DEPARTMENT, February 18, 1861. [Congressional Globe, August 8, 1861, pp. 457,458] "SIR: On the 11th February, the House of Representatives adopted a resolution requesting the President, if not incompatible with the public interests, to communicate 'the reasons that had induced him to assemble so large a number of troops in this city, and why they are kept here; and whether he has any information of a Conspiracy upon the part of any portion of the citizens of this Country to seize upon the Capital and prevent the Inauguration of the President elect.'

"This resolution having been submitted to this Department for consideration and report, I have the honor to state, that the body of troops temporarily transferred to this city is not as large as is assumed by the resolution, though it is a well-appointed corps and admirably adapted for the preservation of the public peace. The reasons which led to their being assembled here will now be briefly stated.

"I shall make no comment upon the origin of the Revolution which, for the last three months, has been in progress in several of the Southern States, nor shall I enumerate the causes which have hastened its advancement or exasperated its temper. The scope of the questions submitted by the House will be sufficiently met by dealing with the facts as they exist, irrespective of the cause from which they have proceeded. That Revolution has been distinguished by a boldness and completeness of success rarely equaled in the history of Civil Commotions. Its overthrow of the Federal authority has not only been sudden and wide-spread, but has been marked by excesses which have alarmed all and been sources of profound humiliation to a large portion of the American People. Its history is a history of surprises and treacheries and ruthless spoliations. The Forts of the United States have been captured and garrisoned, and hostile flags unfurled upon their ramparts. Its arsenals have been seized, and the vast amount of public arms they contained appropriated to the use of the captors; while more than half a million dollars, found in the Mint at New Orleans, has been unscrupulously applied to replenish the coffers

of Louisiana. Officers in command of revenue cutters of the United States have been prevailed on to violate their trusts and surrender the property in their charge; and instead of being branded for their crimes, they, and the vessels they betrayed, have been cordially received into the service of the Seceded States. These movements were attended by yet more discouraging indications of immorality. It was generally believed that this Revolution was guided and urged on by men occupying the highest positions in the public service, and who, with the responsibilities of an oath to support the Constitution still resting upon their consciences, did not hesitate secretly to plan and openly to labor for, the dismemberment of the Republic whose honors they enjoyed and upon whose Treasury they were living. As examples of evil are always more potent than those of good, this spectacle of demoralization on the part of States and statesmen could not fail to produce the most deplorable consequences. The discontented and the disloyal everywhere took courage. In other States, adjacent to and supposed to sympathize in sense of political wrong with those referred to, Revolutionary schemes were set on foot, and Forts and arms of the United States seized. The unchecked prevalence of the Revolution, and the intoxication which its triumphs inspired, naturally suggested wilder and yet more desperate enterprises than the conquest of ungarrisoned Forts, or the plunder of an unguarded Mint. At what time the armed occupation of Washington City became a part of the Revolutionary Programme, is not certainly known. More than six weeks ago, the impression had already extensively obtained that a Conspiracy for the accomplishment of this guilty purpose was in process of formation, if not fully matured. The earnest endeavors made by men known to be devoted to the Revolution, to hurry Virginia and Maryland out of the Union, were regarded as preparatory steps for the subjugation of Washington. This plan was in entire harmony with the aim and spirit of those seeking the subversion of the Government, since no more fatal blow at its existence could be struck than the permanent and hostile possession of the seat of its power. It was in harmony, too, with the avowed designs of the Revolutionists, which looked to the formation of a Confederacy of all the Slave States, and necessarily to the Conquest of the Capital within their limits. It seemed not very indistinctly prefigured in a Proclamation made upon the floor of the Senate, without qualification, if not exultingly, that the Union was already dissolved—a Proclamation which, however intended, was certainly calculated to invite, on the part of men of desperate fortunes or of Revolutionary States, a raid upon the Capital. In view of the violence and turbulent disorders already exhibited in the South, the public mind could not reject such a scheme as at all improbable. That a belief in its existence was entertained by multitudes, there can be no doubt, and this belief I fully shared. My conviction rested not only on the facts already alluded to, but upon information, some of which was of a most conclusive character, that reached the Government from many parts of the Country, not merely expressing the prevalence of the opinion that such an organization had been formed, but also often furnishing the plausible grounds on which the opinion was based. Superadded to these proofs, were the oft-repeated declarations of men in high political positions here, and who were known to have intimate affiliations with the Revolution—if indeed they did not hold its reins in their hands—to the effect that Mr. Lincoln would not, or should not be inaugurated at Washington. Such declarations, from such men, could not be treated as empty bluster. They were the solemn utterances of those who well understood the import of their words, and who, in the exultation of the temporary victories gained over their Country's flag in the South, felt assured that events would soon give them the power to verify their predictions. Simultaneously with these

prophetic warnings, a Southern journal of large circulation and influence, and which is published near the city of Washington, advocated its seizure as a possible political necessity.

"The nature and power of the testimony thus accumulated may be best estimated by the effect produced upon the popular mind. Apprehensions for the safety of the Capital were communicated from points near and remote, by men unquestionably reliable and loyal. The resident population became disquieted, and the repose of many families in the city was known to be disturbed by painful anxieties. Members of Congress, too—men of calm and comprehensive views, and of undoubted fidelity to their Country—frankly expressed their solicitude to the President and to this Department, and formally insisted that the defenses of the Capital should be strengthened. With such warnings, it could not be forgotten that, had the late Secretary of War heeded the anonymous letter which he received, the tragedy at Harper's Ferry would have been avoided; nor could I fail to remember that, had the early admonitions which reached here in regard to the designs of lawless men upon the Forts of Charleston Harbor been acted on by sending forward adequate reinforcements before the Revolution began, the disastrous political complications that ensued might not have occurred.

"Impressed by these circumstances and considerations, I earnestly besought you to allow the concentration, at this city, of a sufficient military force to preserve the public peace from all the dangers that seemed to threaten it. An open manifestation, on the part of the Administration, of a determination, as well as of the ability, to maintain the laws, would, I was convinced, prove the surest, as also the most pacific, means of baffling and dissolving any Conspiracy that might have been organized. It was believed too that the highest and most solemn responsibility resting upon a President withdrawing from the Government, was to secure to his successor a peaceful Inauguration. So deeply, in my judgment, did this duty concern the whole Country and the fair fame of our Institutions, that, to guarantee its faithful discharge, I was persuaded no preparation could be too determined or too complete. The presence of the troops alluded to in the resolution is the result of the conclusion arrived at by yourself and Cabinet, on the proposition submitted to you by this Department. Already this display of life and loyalty on the part of your Administration, has produced the happiest effects. Public confidence has been restored, and the feverish apprehension which it was so mortifying to contemplate has been banished. Whatever may have been the machinations of deluded, lawless men, the execution of their purpose has been suspended, if not altogether abandoned in view of preparations which announce more impressively than words that this Administration is alike able and resolved to transfer in peace, to the President elect, the authority that, under the Constitution, belongs to him. To those, if such there be, who desire the destruction of the Republic, the presence of these troops is necessarily offensive; but those who sincerely love our Institutions cannot fail to rejoice that, by this timely precaution they have possibly escaped the deep dishonor which they must have suffered had the Capital, like the Forts and Arsenals of the South, fallen into the hands of the Revolutionists, who have found this great Government weak only because, in the exhaustless beneficence of its spirit, it has refused to strike, even in its own defense, lest it should wound the aggressor.

"I have the honor to be, very respectfully, your obedient servant,

"J. HOLT. "Secretary of War,

"THE PRESIDENT."]

On February 20th, Forts Chadbourne and Belknap were seized by the Texan Rebels; and on the 22nd, the Federal General Twiggs basely surrendered to them all the fortifications under his control, his little Army, and all the Government stores in his possession—comprising \$55,000 in specie, 35,000 stand of arms, 26 pieces of mounted artillery, 44 dismounted guns, and ammunition, horses, wagons, forage, etc., valued at nearly \$2,000,000.

On the 2nd of March, the Texan Rebels seized the United States Revenue cutter "Dodge" at Galveston; and on the 6th, Fort Brown was surrendered to them.

Thus, with surrender after surrender, and seizure after seizure, of its revenue vessels and fortifications and troops and arms and munitions of war in the Southern States—with Fort Sumter invested and at the mercy of any attack, and Fortress Monroe alone of all the National strongholds yet safe—with State after State seceding—what wonder that, while these events gave all encouragement to the Southern Rebels, the Patriots of the North stood aghast at the appalling spectacle of a crumbling and dissolving Union!

During this period of National peril, the debates in both branches of Congress upon propositions for adjustment of the unfortunate differences between the Southern Seceders and the Union, as has been already hinted, contributed still further to agitate the public mind. Speech after speech by the ablest and most brilliant Americans in public life, for or against such propositions, and discussing the rightfulness or wrongfulness of Secession, were made in Congress day after day, and, by means of the telegraph and the press, alternately swayed the Northern heart with feelings of hope, chagrin, elation or despair.

The Great Debate was opened in the Senate on almost the very first day of its session (December 4th, 1860), by Mr. Clingman, of North Carolina, who, referring to South Carolina, declared that "Instead of being precipitate, she and the whole South have been wonderfully patient." A portion of that speech is interesting even at this time, as showing how certain phases of the Tariff and Internal Improvement questions entered into the consideration of some of the Southern Secession leaders. Said he, "I know there are

intimations that suffering will fall upon us of the South, if we secede. My people are not terrified by any such considerations. * * * They have no fears of the future if driven to rely on themselves. The Southern States have more territory than all the Colonies had when they Seceded from Great Britain, and a better territory. Taking its position, climate, and fertility into consideration, there is not upon Earth a body of territory superior to it. * * * The Southern States have, too, at this day, four times the population the Colonies had when they Seceded from Great Britain. Their exports to the North and to Foreign Countries were, last year, more than \$300,000,000; and a duty of ten per cent. upon the same amount of imports would give \$30,000,000 of revenue—twice as much as General Jackson's administration spent in its first year. Everybody can see, too, how the bringing in of \$300,000,000 of imports into Southern ports would enliven business in our seaboard towns. I have seen with some satisfaction, also, Mr. President, that the war made upon us has benefitted certain branches of industry in my State. There are manufacturing establishments in North Carolina, the proprietors of which tell me that they are making fifty per cent. annually on their whole capital, and yet cannot supply one tenth of the demand for their production. The result of only ten per cent. duties in excluding products from abroad, would give life and impetus to mechanical and manufacturing industry, throughout the entire South. Our people understand these things, and they are not afraid of results, if forced to declare Independence. Indeed I do not see why Northern Republicans should wish to continue a connection with us upon any terms. * * * They want High Tariff likewise. They may put on five hundred per cent. if they choose, upon their own imports, and nobody on our side will complain. They may spend all the money they raise on railroads, or opening harbors, or anything on earth they desire, without interference from us; and it does seem to me that if they are sincere in their views they ought to welcome a separation."

From the very commencement of this long three-months debate, it was the policy of the Southern leaders to make it appear that the Southern States were in an attitude of injured innocence and defensiveness against Northern aggression. Hence, it was that, as early as December 5th, on the floor of the Senate, through Mr. Brown, of Mississippi, they declared: "All we ask is to be allowed to depart in Peace. Submit we will not; and if, because we will

not submit to your domination, you choose to make War upon us, let God defend the Right!"

At the same time it was esteemed necessary to try and frighten the North into acquiescence with this demand to be "let alone." Hence such utterances as those of Clingman and Iverson, to which reference has already been made, and the especially defiant close of the latter's speech, when—replying to the temperate but firm Union utterances of Mr. Hale—the Georgia Senator said: "Sir, I do not believe there will be any War; but if War is to come, let it come; we will meet the Senator from New Hampshire and all the myrmidons of Abolitionism and Black Republicanism everywhere upon our own soil; and, in the language of a distinguished member from Ohio in relation to the Mexican War, we will 'welcome you with bloody hands to hospitable graves.'"

On the other hand, in order to encourage the revolting States to the speedy commission of overt acts of Rebellion and violence, that would precipitate War without a peradventure, utterances fell from Southern lips, in the National Senate Chamber, like those of Mr. Wigfall, when he said, during this first day of the debate: "Frederick the Great, on one occasion, when he had trumped up an old title to some of the adjacent territory, quietly put himself in possession and then offered to treat. Were I a South Carolinian, as I am a Texan, and I knew that my State was going out of the Union, and that this Government would attempt to use force, I would, at the first moment that that fact became manifest, seize upon the Forts and the arms and the munitions of war, and raise the cry 'To your tents, O Israel, and to the God of battles be this issue!'"

And, as we have already seen, the Rebels of the South were not slow in following the baleful advice to the letter. But it was not many days after this utterance when the Conspirators against the Union evidently began to fear that the ground for Rebellion, upon which they had planted themselves, would be taken from under their feet by the impulse of Compromise and Concession which stirred so strongly the fraternal spirit of the North. That peaceful impulse must be checked and exasperated by sneers and impossible demands. Hence, on December 12th we find one of the most active and favorite mouthpieces of Treason, Mr. Wigfall, putting forth such demands, in his most offensive manner.

Said he: "If the two Senators from New York (Seward and King), the Senator from Ohio (Wade), the two Senators from Illinois (Douglas and Trumbull), the Senator from New Hampshire (Hale), the Senator from Maine, and others who are regarded as representative men, who have denied that by the Constitution of the United States, Slaves are recognized as Property; who have urged and advocated those acts which we regard as aggressive on the part of the People—if they will rise here, and say in their places, that they desire to propose amendments to the Constitution, and beg that we will vote for them; that they will, in good faith, go to their respective constituencies and urge the ratification; that they believe, if these Gulf States will suspend their action, that those amendments will be ratified and carried out in good faith; that they will cease preaching this 'irrepressible conflict'; and if, in those amendments, it is declared that Slaves are Property, that they shall be delivered up upon demand; and that they will assure us that Abolition societies shall be abolished; that Abolition speeches shall no longer be made; that we shall have peace and quiet; that we shall not be called cut-throats and pirates and murderers; that our women shall not be slandered—these things being said in good faith, the Senators begging that we will stay our hand until an honest effort can be made, I believe that there is a prospect of giving them a fair consideration!"

Small wonder is it, that this labored and ridiculous piece of impertinence was received with ironical laughter on the Republican side of the Senate Chamber. And it was in reference to these threats, and these preposterous demands—including the suppression of the right of Free Discussion and Liberty of the Press—that, in the same chamber (January 7, 1861) the gallant and eloquent Baker said:

"Your Fathers had fought for that right, and more than that, they had declared that the violation of that right was one of the great causes which impelled them to the Separation. * * * Sir, the Liberty of the Press is the highest safeguard to all Free Government. Ours could not exist without it. It is with us, nay, with all men, like a great exulting and abounding river, It is fed by the dews of Heaven, which distil their sweetest drops to form it. It gushes from the rill, as it breaks from the deep caverns of the Earth. It is fed by a thousand affluents, that dash from the mountaintop to separate again into a thousand bounteous and irrigating rills around. On its broad bosom it bears a thousand barks. There, Genius spreads its purpling sail. There,

Poetry dips its silver oar. There, Art, Invention, Discovery, Science, Morality, Religion, may safely and securely float. It wanders through every land. It is a genial, cordial source of thought and inspiration, wherever it touches, whatever it surrounds. Sir, upon its borders, there grows every flower of Grace and every fruit of Truth. I am not here to deny that that Stream sometimes becomes a dangerous Torrent, and destroys towns and cities upon its bank; but I am here to say that without it, Civilization, Humanity, Government, all that makes Society itself, would disappear, and the World would return to its ancient Barbarism.

"Sir, if that were to be possible, or so thought for a moment, the fine conception of the great Poet would be realized. If that were to be possible, though but for a moment, Civilization itself would roll the wheels of its car backward for two thousand years. Sir, if that were so, it would be true that:

'As one by one in dread Medea's train,
Star after Star fades off th' ethereal plain,
Thus at her fell approach and secret might,
Art after art goes out, and all is night.
Philosophy, that leaned on Heaven before,
Sinks to her second cause, and is no more.
Religion, blushing, veils her sacred fires,
And, unawares, Morality expires.'

"Sir, we will not risk these consequences, even for Slavery; we will not risk these consequences even for Union; we will not risk these consequences to avoid that Civil War with which you threaten us; that War which, you announce so deadly, and which you declare to be inevitable. * *

* I will never yield to the idea that the great Government of this Country shall protect Slavery in any Territory now ours, or hereafter to be acquired. It is, in my opinion, a great principle of Free Government, not, to be surrendered.

"It is in my judgment, the object of the great battle which we have fought, and which we have won. It is, in my poor opinion, the point upon which there is concord and agreement between the great masses of the North, who may agree in no other political opinion whatever. Be he Republican, or Democrat, or Douglas man, or Lincoln man; be he from the

North, or the West, from Oregon, or from Maine, in my judgment nine-tenths of the entire population of the North and West are devoted, in the very depths of their hearts, to the great Constitutional idea that Freedom is the rule, that Slavery is the exception, that it ought not to be extended by virtue of the powers of the Government of the United States; and, come weal, come woe, it never shall be.

"But, sir, I add one other thing. When you talk to me about Compromise or Concession, I am not sure that I always understand you. Do you mean that I am to give up my convictions of right? Armies cannot compel that in the breast of a Free People. Do you mean that I am to concede the benefits of the political struggle through which we have passed, considered politically, only? You are too just and too generous to ask that. Do you mean that we are to deny the great principle upon which our political action has been based? You know we cannot. But if you mean by Compromise and Concession to ask us to see whether we have not been hasty, angry, passionate, excited, and in many respects violated your feelings, your character, your right of property, we will look; and, as I said yesterday, if we have, we will undo it. Allow me to say again, if there be any lawyer or any Court that will advise us that our laws are unconstitutional, we will repeal them.

"Now as to territory. I will not yield one inch to Secession; but there are things that I will yield, and there are things to which I will yield. It is somewhere told that when Harold of England received a messenger from a brother with whom he was at variance, to inquire on what terms reconciliation and peace could be effected between brothers, he replied in a gallant and generous spirit in a few words, 'the, terms I offer are the affection of a brother; and the Earldom of Northumberland.' And, said the Envoy, as he marched up the Hall amid the warriors that graced the state of the King, 'if Tosti, thy brother, agree to this, what terms will you allow to his ally and friend, Hadrada, the giant.' 'We will allow,' said Harold, 'to Hadrada, the giant, seven feet of English ground, and if he be, as they say, a giant, some few inches more!' and, as he spake, the Hall rang with acclamation.

"Sir, in that spirit I speak. I follow, at a humble distance, the ideas and the words of Clay, illustrious, to be venerated, and honored, and remembered,

forever. * * * He said—I say: that I will yield no inch, no word, to the threat of Secession, unconstitutional, revolutionary, dangerous, unwise, at variance with the heart and the hope of all mankind save themselves. To that I yield nothing; but if States loyal to the Constitution, if people magnanimous and just, desiring a return of fraternal feeling, shall come to us and ask for Peace, for permanent, enduring peace and affection, and say, 'What will you grant? I say to them, 'Ask all that a gentleman ought to propose, and I will yield all that a gentleman ought to offer.' Nay, more: if you are galled because we claim the right to prohibit Slavery in territory now Free, or in any Territory which acknowledges our jurisdiction, we will evade—I speak but for myself—I will aid in evading that question; I will agree to make it all States, and let the People decide at once. I will agree to place them in that condition where the prohibition of Slavery will never be necessary to justify ourselves to our consciences or to our constituents. I will agree to anything which is not to force upon me the necessity of protecting Slavery in the name of Freedom. To that I never can and never will yield."

The speeches of Seward, of Douglas, of Crittenden, of Andrew Johnson, of Baker, and others, in behalf of the Union, and those of Benjamin, Davis, Wigfall, Lane, and others, in behalf of Secession, did much toward fixing the responsibility for the approaching bloody conflict where it belonged. The speeches of Andrew Johnson of Tennessee—who, if he at a subsequent period of the Nation's history, proved himself not the worthiest son of the Republic, at this critical time, at all events, did grand service in the National Senate—especially had great and good effect on the public mind in the Northern and Border States. They were, therefore, gall and wormwood to the Secession leaders, who hoped to drag the Border States into the great Southern Confederacy of States already in process of formation.

Their irritation was shown in threats of personal violence to Mr. Johnson, as when Wigfall—replying February 7th, 1861, to the latter's speech, said, "Now if the Senator wishes to denounce Secession and Nullification eo nomine, let him go back and denounce Jefferson; let him denounce Jackson, if he dare, and go back and look that Tennessee Democracy in the face, and see whether they will content themselves with riddling his effigy!"

It would seem also, from another part of Wigfall's reply, that the speeches of Union Senators had been so effective that a necessity was felt on the part of the Southern Conspirators to still further attempt to justify Secession by shifting the blame to Northern shoulders, for, while referring to the Presidential canvass of 1860—and the attitude of the Southern Secession leaders during that exciting period—he said: "We (Breckinridge-Democrats) gave notice, both North and South, that if Abraham Lincoln was elected, this Union was dissolved. I never made a speech during the canvass without asserting that fact. * * * Then, I say, that our purpose was not to dissolve the Union; but the dire necessity has been put upon us. The question is, whether we shall live longer in a Union in which a Party, hostile to us in every respect, has the power in Congress, in the Executive department, and in the Electoral Colleges—a Party who will have the power even in the Judiciary. We think it is not safe. We say that each State has the clear indisputable right to withdraw if she sees fit; and six of the States have already withdrawn, and one other State is upon the eve of withdrawing, if she has not already done so. How far this will spread no man can tell!"

As tending to show the peculiar mixture of brag, cajolery, and threats, involved in the attitude of the South, as expressed by the same favorite Southern mouthpiece, toward the Border-States on the one hand, and the Middle and New England States on the other, a further extract from this (February 7th) speech of the Texan Senator may be of interest. Said he:

"With exports to the amount of hundreds of millions of dollars, our imports must be the same. With a lighter Tariff than any people ever undertook to live under, we could have larger revenue. We would be able to stand Direct Taxation to a greater extent than any people ever could before, since the creation of the World. We feel perfectly competent to meet all issues that may be presented, either by hostility from abroad or treason at home. So far as the Border-States are concerned, it is a matter that concerns them alone. Should they confederate with us, beyond all doubt New England machinery will be worked with the water power of Tennessee, of Kentucky, of Virginia and of Maryland; the Tariff laws that now give New England the monopoly in the thirty-three States, will give to these Border States a monopoly in the Slave-holding States. Should the non-Slave-holding States choose to side against us in organizing their Governments, and cling to their New England brethren, the only result will be, that the

meat, the horses, the hemp, and the grain, which we now buy in Pennsylvania, in Ohio, in Indiana and Illinois, will be purchased in Kentucky and in Western Virginia and in Missouri. Should Pennsylvania stand out, the only result will be, that the iron which is now dug in Pennsylvania, will be dug in the mountains of Tennessee and of Virginia and of Kentucky and of North Carolina. These things we know.

"We feel no anxiety at all, so far as money or men are concerned. We desire War with nobody; we intend to make no War; but we intend to live under just such a Government as we see fit. Six States have left this Union, and others are going to leave it simply because they choose to do it; that is all. We do not ask your consent; we do not wish it. We have revoked our ratification of the Treaty commonly known as the Constitution of the United States; a treaty for common defense and general welfare; and we shall be perfectly willing to enter into another Treaty with you, of peace and amity. Reject the olive branch and offer us the sword, and we accept it; we have not the slightest objection. Upon that subject we feel as the great William Lowndes felt upon another important subject, the Presidency, which he said was neither to be sought nor declined. When you invade our soil, look to your own borders. You say that you have too many people, too many towns, too dense a population, for us to invade you. I say to you Senators, that there is nothing that ever stops the march of an invading force, except a desert. The more populous a country, the more easy it is to subsist an army."

After declaring that—"Not only are our non-Slaveholders loyal, but even our Negroes are. We have no apprehensions whatever of insurrection—not the slightest. We can arm our negroes, and leave them at home, when we are temporarily absent"—Mr. Wigfall proceeded to say: "We may as well talk plainly about this matter. This is probably the last time I shall have an opportunity of addressing you. There is another thing that an invading army cannot do. It cannot burn up plantations. You can pull down fences, but the Negroes will put them up the next morning. The worst fuel that ever a man undertook to make fire with, is dirt; it will not burn. Now I have told you what an invading army cannot do. Suppose I reverse the picture and tell you what it can do. An invading army in an enemy's country, where there is a dense population, can subsist itself at a very little cost; it does not always pay for what it gets. An invading army can burn down towns; an invading army can burn down manufactories; and it can starve operatives. It can do

all these things. But an Invading army, and an army to defend a Country, both require a military chest. You may bankrupt every man south of North Carolina, so that his credit is reduced to such a point that he could not discount a note for thirty dollars, at thirty days; but the next autumn those Cotton States will have just as much money and as much credit as they had before. They pick money off the cotton plant. Every time that a Negro touches a cotton-pod with his hand, he pulls a piece of silver out of it, and he drops it into the basket in which it is carried to the gin-house. It is carried to the packing screw. A bale of cotton rolls out—in other words, five ten-dollar pieces roll out—covered with canvas. We shall never again make less than five million bales of cotton. * * * We can produce five million bales of cotton, every bale worth fifty dollars, which is the lowest market price it has been for years past. We shall import a bale of something else, for every bale of cotton that we export, and that bale will be worth fifty dollars. We shall find no difficulty under a War-Tariff in raising an abundance of money. We have been at Peace for a very long time, We are very prosperous. Our planters use their cotton, not to buy the necessities of life, but for the superfluities, which they can do without. The States themselves have a mine of wealth in the loyalty and the wealth of their citizens. Georgia, Mississippi, any one of those States can issue its six per cent. bonds tomorrow, and receive cotton in payment to the extent almost of the entire crop. They can first borrow from their own citizens; they can tax them to an almost unlimited extent; and they can raise revenue from a Tariff to an almost unlimited extent.

"How will it be with New England? where will their revenue come from? From your Custom-houses? what do you export? You have been telling us here for the last quarter of a century, that you cannot manufacture, even for the home market, under the Tariffs which we have given you. When this Tariff ceases to operate in your favor, and you have to pay for coming into our markets, what will you export? When your machinery ceases to move, and your operatives are turned out, will you tax your broken capitalist or your starving operative? When the navigation laws cease to operate, what will become of your shipping interest? You are going to blockade our ports, you say. That is a very innocent game; and you suppose we shall sit quietly down and submit to a blockade. I speak not of foreign interference, for we look not for it. We are just as competent to take Queen Victoria and Louis

Napoleon under our protection, as they are to take us; and they are a great deal more interested to-day in receiving cotton from our ports than we are in shipping it. You may lock up every bale of cotton within the limits of the eight Cotton States, and not allow us to export one for three years, and we shall not feel it further than our military resources are concerned. Exhaust the supply of cotton in Europe for one week, and all Europe is in revolution.

"These are facts. You will blockade us! Do you suppose we shall do nothing, even upon the sea? How many letters of marque and reprisal would it take to put the whole of your ships up at your wharves to rot? Will any merchant at Havre, or Liverpool, or any other portion of the habitable globe, ship a cargo upon a New England, or New York, or Philadelphia clipper, or other ship, when he knows that the seas are swarming with letters of marque and reprisal? Why the mere apprehension of such a thing will cut you out of the Carrying Trade of the civilized World. * * * I speak not of the absurdity of the position that you can blockade our ports, admitting at the same time that we are in the Union. Blockade is a remedy, as all writers on International law say, against a Foreign Power with whom you are at War. You cannot use a blockade against your own people. An embargo even, you cannot use. That is a remedy against a Foreign Nation with whom you expect to be at War. You must treat us as in the Union, or out of it. We have gone out. We are willing to live at peace with you; but, as sure as fate, whenever any flag comes into one of our ports, that has thirty-three stars upon it, that flag will be fired at. Displaying a flag with stars which we have plucked from that bright galaxy, is an insult to the State within whose waters that flag is displayed. You cannot enforce the laws without Coercion, and you cannot Coerce without War.

"These matters, then, can be settled. How? By withdrawing your troops; admitting our right to Self-government clearly, unqualifiedly. Do this, and there is no difficulty about it. You say that you will not do it. Very well; we have no objection—none whatever. That is Coercion. When you have attempted it, you will find that you have made War. These, Senators, are facts. I come here to plead for Peace; but I have seen so much and felt so much, that I am becoming at last, to tell the plain truth of the matter, rather indifferent as to which way the thing turns. If you want War, you can have it. If you want Peace, you can get it; but I plead not for Peace."

Meanwhile the Seceding States of the South were strengthening their attitude by Confederation. On February 4, 1861, the Convention of Seceding States, called by the South Carolina Convention at the time of her Secession, met, in pursuance of that call, at Montgomery, Alabama, and on the 9th adopted a Provisional Constitution and organized a Provisional Government by the election of Jefferson Davis of Mississippi, as President, and Alexander H. Stephens of Georgia, as Vice-President; to serve until a Presidential election could be held by the people of the Confederacy.

[At a later day, March 11, 1861, a permanent Constitution for the "Confederate States" was adopted, and, in the Fall of the same year, Messrs. Davis and Stephens were elected by popular vote, for the term of six years ensuing, as President and Vice-President, respectively, of the Confederacy.]

Mr. Davis almost at once left Jackson, Mississippi, for Montgomery, where he arrived and delivered his Inaugural, February 17, having received on his road thither a succession of ovations from the enthusiastic Rebels, to which he had responded with no less than twenty-five speeches, very similar in tone to those made in the United States Senate by Mr. Wigfall and others of that ilk—breathing at once defiance and hopefulness, while admitting the difficulties in the way of the new Confederacy.

"It may be," said he, at Jackson, "that we will be confronted by War; that the attempt will be made to blockade our ports, to starve us out; but they (the Union men of the North) know little of the Southern heart, of Southern endurance. No amount of privation could force us to remain in a Union on unequal terms. England and France would not allow our great staple to be dammed up within our present limits; the starving thousands in their midst would not allow it. We have nothing to apprehend from Blockade. But if they attempt invasion by land, we must take the War out of our territory. If War must come, it must be upon Northern, and not upon Southern soil. In the meantime, if they were prepared to grant us Peace, to recognize our equality, all is well."

And, in his speech at Stevenson, Alabama, said he "Your Border States will gladly come into the Southern Confederacy within sixty days, as we will be their only friends. England will recognize us, and a glorious future is before us. The grass will grow in the Northern cities, where the pavements have been worn off by the tread of Commerce. We will carry War where it

is easy to advance—where food for the sword and torch await our Armies in the densely populated cities; and though they may come and spoil our crops, we can raise them as before; while they cannot rear the cities which took years of industry and millions of money to build."

Very different in tone to these, were the kindly and sensible utterances of Mr. Lincoln on his journey from Springfield to Washington, about the same time, for Inauguration as President of the United States. Leaving Springfield, Illinois, February 11th, he had pathetically said:

"My friends: No one, not in my position, can realize the sadness I feel at this parting. To this people I owe all that I am. Here I have lived more than a quarter of a century. Here my children were born, and here one of them lies buried. I know not how soon I shall see you again. I go to assume a task more difficult than that which has devolved upon any other man since the days of Washington. He never would have succeeded except for the aid of Divine Providence, upon which he at all times relied. I feel that I cannot succeed without the same Divine blessing which sustained him; and on the same Almighty Being I place my reliance for support. And I hope you, my friends, will all pray that I may receive that Divine assistance, without which I cannot succeed, but with which success is certain. Again I bid you an affectionate farewell."

At Indianapolis, that evening, the eve of his birthday anniversary, after thanking the assembled thousands for their "magnificent welcome," and defining the words "Coercion" and "Invasion"—at that time so loosely used—he continued: "But if the United States should merely hold and retake her own Forts and other property, and collect the duties on foreign importation, or even withhold the mails from places where they were habitually violated, would any or all of these things be 'Invasion' or 'Coercion'? Do our professed lovers of the Union, who spitefully resolve that they will resist Coercion and Invasion, understand that such things as these on the part of the United States would be 'Coercion' or 'Invasion' of a State? If so, their idea of means to preserve the object of their great affection would seem to be exceedingly thin and airy."

At Columbus, Ohio, he spoke in a like calm, conservative, reasoning way—with the evident purpose of throwing oil on the troubled waters—when

he said: "I have not maintained silence from any want of real anxiety. It is a good thing that there is no more than anxiety; for there is nothing going wrong. It is a consoling circumstance that, when we look out, there is nothing that really hurts anybody. We entertain different views upon political questions; but nobody is suffering anything. This is a consoling circumstance; and from it we may conclude that all we want is time, patience, and a reliance on that God who has never forsaken this People."

So, too, at Pittsburg, Pa., February 15th, he said, of "our friends," as he termed them, the Secessionists: "Take even their own views of the questions involved, and there is nothing to justify the course they are pursuing. I repeat, then, there is no crisis, except such an one as may be gotten up at any time by turbulent men, aided by designing politicians. My advice to them, under the circumstances, is to keep cool. If the great American People only keep their temper both sides of the line, the trouble will come to an end, and the question which now distracts the Country be settled, just as surely as all other difficulties, of a like character, which have been originated in this Government, have been adjusted. Let the people on both sides keep their self-possession, and, just as other clouds have cleared away in due time, so will this great Nation continue to prosper as heretofore."

And toward the end of that journey, on the 22nd of February—Washington's Birthday—in the Independence Hall at Philadelphia, after eloquently affirming his belief that "the great principle or idea that kept this Confederacy so long together was * * * that sentiment in the Declaration of Independence which gave Liberty not alone to the People of this Country, but" he hoped "to the World, for all future time * * * which gave promise that, in due time, the weight would be lifted from the shoulders of all men"—he added, in the same firm, yet temperate and reassuring vein: "Now, my friends, can this Country be saved on that basis? If it can, I will consider myself one of the happiest men in the world, if I can help to save it. If it cannot be saved on that basis, it will be truly awful. But, if this Country cannot be saved without giving up that principle, I was about to say I would rather be assassinated on this spot than surrender it. Now in my view of the present aspect of affairs, there need be no bloodshed or War. There is no necessity for it. I am not in favor of such a course; and I may say, in advance, that there will be no bloodshed, unless it be forced upon the Government, and then it will be compelled to act in self-defense. * * * I

have said nothing but what I am willing to live by, and, if it be the pleasure of Almighty God, to die by."

Thus, as he progressed on that memorable journey from his home in Illinois, through Indianapolis, Cincinnati, Columbus, Pittsburgh, Cleveland, Erie, Buffalo, Albany, New York, Trenton, Newark, Philadelphia, and Harrisburg—amid the prayers and blessings and acclamations of an enthusiastic and patriotic people—he uttered words of wise conciliation and firm moderation such as beseemed the high functions and tremendous responsibilities to which the voice of that liberty—and union-loving people had called him, and this too, with a full knowledge, when he made the Philadelphia speech, that the enemies of the Republic had already planned to assassinate him before he could reach Washington.

The prudence of his immediate friends, fortunately defeated the murderous purpose—and by the simple device of taking the regular night express from Philadelphia instead of a special train next day—to Washington, he reached the National Capital without molestation early on the morning of the 23rd of February.

That morning, after Mr. Lincoln's arrival, in company with Mr. Lovejoy, the writer visited him at Willard's Hotel. During the interview both urged him to "Go right along, protect the property of the Country, and put down the Rebellion, no matter at what cost in men and money." He listened with grave attention, and said little, but very clearly indicated his approval of all the sentiments thus expressed—and then, with the same firm and manly and cheerful faith in the outcome, he added: "As the Country has placed me at the helm of the Ship, I'll try to steer her through."

The spirit in which he proposed to accomplish this superhuman task, was shown when he told the Southern people through the Civic authorities of Washington on the 27th of February—When the latter called upon him—that he had no desire or intention to interfere with any of their Constitutional rights—that they should have all their rights under the Constitution, "not grudgingly, but fully and fairly." And what was the response of the South to this generous and conciliatory message? Personal sneers—imputations of Northern cowardice—boasts of Southern prowess—

scornful rejection of all compromise—and an insolent challenge to the bloody issue of arms!

Said Mr. Wigfall, in the United States Senate, on March 2d, alluding to Mr. Lincoln, "I do not think that a man who disguises himself in a soldier's cloak and a Scotch cap (a more thorough disguise could not be assumed by such a man) and makes his entry between day and day, into the Capital of the Country that he is to govern—I hardly think that he is going to look War sternly in the face.

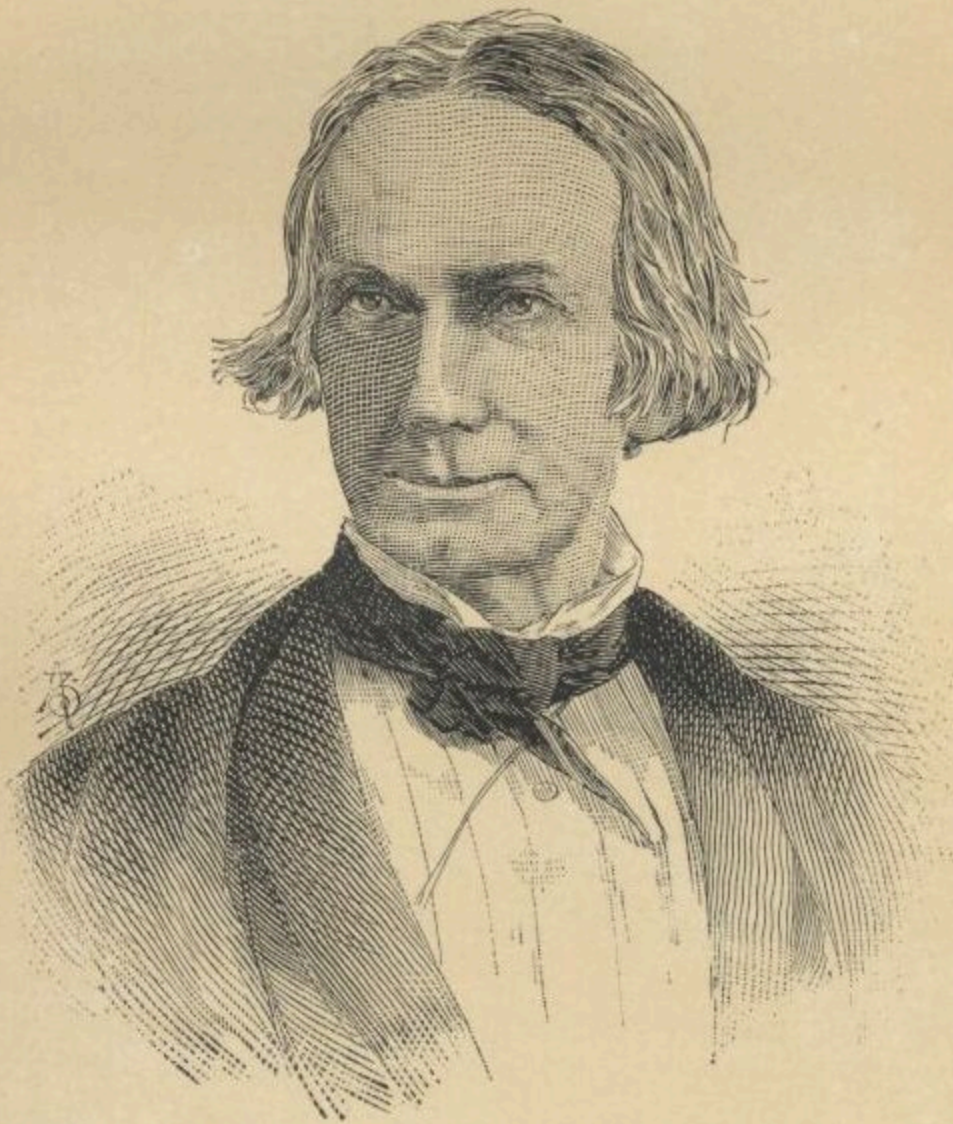
[Had Mr. Wigfall been able at this time to look four years into the future and behold the downfall of the Southern Rebellion, the flight of its Chieftains, and the capture of Jefferson Davis while endeavoring to escape, with his body enclosed in a wrapper and a woman's shawl over his head, as stated by Lieutenant-Colonel Stuart of Jefferson Davis's Staff, p. 756, vol. ii., Greeley's American Conflict—he would hardly have retailed this slander.]

"I look for nothing else than that the Commissioners from the Confederated States will be received here and recognized by Abraham Lincoln. I will now predict that this Republican Party that is going to enforce the Laws, preserve the Union, and collect Revenue, will never attempt anything so silly; and that instead of taking Forts, the troops will be withdrawn from those which we now have. See if this does not turn out to be so, in less than a week or ten days."

In the same insulting diatribe, he said: "It is very easy for men to bluster who know there is going to be no danger. Four or five million people living in a territory that extends from North Carolina down to the Rio Grande, who have exports to above three hundred million dollars, whose ports cannot be blockaded, but who can issue letters of marque and reprisal, and sweep your commerce from the seas, and who will do it, are not going to be trifled with by that sensible Yankee nation. Mark my words. I did think, at one time, there was going to be War; I do not think so now. * * * The Star of the West swaggered into Charleston harbor, received a blow planted full in the face, and staggered out. Your flag has been insulted; redress it if you dare! You have submitted to it for two months, and you will submit to it for ever. * * * We have dissolved the Union; mend it if you can; cement it with blood; try the experiment! we do not desire War; we wish to avoid it. * * * This we say; and if you choose to settle this question by the Sword, we feel, we know, that we have the Right. We interfere with you in no way. We ask

simply that you will not interfere with us. * * * You tell us you will keep us in the Union. Try the experiment!"

And then, with brutal frankness, he continued: "Now, whether what are called The Crittenden Resolutions will produce satisfaction in some of these Border States, or not, I am unaware; but I feel perfectly sure they would not be entertained upon the Gulf. As to the Resolutions which the Peace Congress has offered us, we might as well make a clean breast of it. If those Resolutions were adopted, and ratified by three fourths of the States of this Union, and no other cause ever existed, I make the assertion that the seven States now out of the Union, would go out upon that."



HENRY CLAY.

CHAPTER VIII.

THE REJECTED OLIVE BRANCH.

While instructive, it will also not be devoid of interest, to pause here, and examine the nature of the Crittenden Resolutions, and also the Resolutions of the Peace Congress, which, we have seen, were spurned by the Secession leaders, through their chief mouthpiece in the United States Senate.

The Crittenden Compromise Resolutions * were in these words:

"A Joint Resolution proposing certain Amendments to the Constitution of the United States:

"Whereas, serious and alarming dissensions have arisen between the Northern and the Southern States, concerning the Rights and security of the Rights of the Slaveholding States, and especially their Rights in the common territory of the United States; and whereas, it is eminently desirable and proper that these dissensions, which now threaten the very existence of this Union, should be permanently quieted and settled by Constitutional provisions which shall do equal justice to all Sections, and thereby restore to the People that peace and good-will which ought to prevail between all the citizens of the United States; Therefore:

"Resolved, by the Senate and House of Representatives of the United States of America, in Congress assembled, (two thirds of both Houses concurring), the following articles be, and are hereby proposed and submitted as amendments to the Constitution of the United States, which shall be valid to all intents and purposes, as part of said Constitution, when ratified by Conventions of three-fourths of the several States:

"Article I. In all the territory of the United States now held, or hereafter to be acquired, situate north of latitude 36 30', Slavery or involuntary servitude, except as a punishment for crime, is prohibited, while such

territory shall remain under Territorial government. In all the territory south of said line of latitude, Slavery of the African race is hereby recognized as existing, and shall not be interfered with by Congress, but shall be protected as Property by all the departments of the Territorial government during its continuance. And when any Territory, north or south of said line, within such boundaries as Congress may prescribe, shall contain the population requisite for a member of Congress, according to the then Federal ratio of representation of the People of the United States, it shall, if its own form of government be republican, be admitted into the Union, on an equal footing with the original States; with or without Slavery, as the Constitution of such new State may provide.

"Article II. Congress shall have no power to abolish Slavery in places under its exclusive jurisdiction, and situate within the limits of States that permit the holding of Slaves.

"Article III. Congress shall have no power to abolish Slavery within the District of Columbia; so long as it exists in the adjoining States of Virginia and Maryland, or either, nor without the consent of the inhabitants, nor without just compensation first made to such owners of Slaves as do not consent to such abolishment. Nor shall Congress, at any time, prohibit officers of the Federal government, or members of Congress whose duties require them to be in said District, from bringing with them their Slaves, and holding them as such during the time their duties may require them to remain there, and afterward taking them from the District.

"Article IV. Congress shall have no power to prohibit or hinder the Transportation of Slaves from one State to another, or to a Territory in which Slaves are, by law, permitted to be held, whether that transportation be by land, navigable rivers, or by the sea.

"Article V. That in addition to the provisions of the third paragraph of the second section of the fourth article of the Constitution of the United States, Congress shall have power to provide by law, and it shall be its duty to provide, that the United States shall pay to the owner who shall apply for it, the full value of his Fugitive Slaves in all cases where the Marshal, or other officer whose duty it was to arrest said Fugitive, was prevented from so doing by violence or intimidation, or where, after arrest, said Fugitive was

rescued by force, and the owner thereby prevented and obstructed in the pursuit of his remedy for the recovery of his Fugitive Slave under the said clause of the Constitution and the laws made in pursuance thereof.

["No Person held to Service or Labour in one State, under the Laws thereof, escaping into another, shall, in consequence of any Law or Regulation therein, be discharged from such Service or Labour, but shall be delivered up on claim of the Party to whom such Service or Labour may be due."—Art. IV., Sec. 2, P 3, U. S. Constitution.]

"And in all such cases, when the United States shall pay for such Fugitive, they shall have the Right, in their own name, to sue the county in which said violence, intimidation, or rescue, was committed, and recover from it, with interest and damages, the amount paid by them for said Fugitive Slave. And the said county, after it has paid said amount to the United States, may, for its indemnity, sue and recover from the wrong-doers or rescuers by whom the owner was prevented from the recovery of his Fugitive Slave, in like manner as the owner himself might have sued and recovered.

"Article VI. No future amendment of the Constitution shall affect the five preceding articles; nor the third paragraph of the second section of the first article of the Constitution, nor the third paragraph of the second section of the fourth article of said Constitution; and no amendment shall be made to the Constitution which shall authorize or give to Congress any power to abolish or interfere with Slavery in any of the States by whose laws it is or may be, allowed or permitted.

["Representatives and Direct Taxes shall be apportioned among the several States which may be included within this Union, according to their respective Numbers, which shall be determined by adding to the whole Number of Free Persons, including those bound to Service for a Term of Years, and excluding Indians not Taxed, three-fifths of all Other Persons," etc.—Art. 1., Sec. 2, P 3, U. S. Constitution.]

"And whereas, also, besides those causes of dissension embraced in the foregoing amendments proposed to the Constitution of the United States, there are others which come within the jurisdiction of Congress, and may be remedied by its legislative power; And whereas it is the desire of Congress, as far as its power will extend, to remove all just cause for the popular

discontent and agitation which now disturb the peace of the Country and threaten the stability of its Institutions; Therefore:

"1. Resolved by the Senate and house of Representatives in Congress assembled, that the laws now in force for the recovery of Fugitive Slaves are in strict pursuance of the plain and mandatory provisions of the Constitution, and have been sanctioned as valid and Constitutional by the judgment of the Supreme Court of the United States; that the Slaveholding States are entitled to the faithful observance and execution of those laws; and that they ought not to be repealed, or so modified or changed as to impair their efficiency; and that laws ought to be made for the punishment of those who attempt, by rescue of the Slave, or other illegal means, to hinder or defeat the due execution of said laws.

"2. That all State laws which conflict with the Fugitive Slave Acts of Congress, or any other Constitutional Acts of Congress, or which, in their operation, impede, hinder, or delay, the free course and due execution of any of said Acts, are null and void by the plain provisions of the Constitution of the United States; yet those State laws, void as they are, have given color to practices, and led to consequences, which have obstructed the due administration and execution of Acts of Congress, and especially the Acts for the delivery of Fugitive Slaves; and have thereby contributed much to the discord and commotion now prevailing. Congress, therefore, in the present perilous juncture, does not deem it improper, respectfully and earnestly, to recommend the repeal of those laws to the several States which have enacted them, or such legislative corrections or explanations of them as may prevent their being used or perverted to such mischievous purposes.

"3. That the Act of the 18th of September, 1850, commonly called the Fugitive Slave Law, ought to be so amended as to make the fee of the Commissioner, mentioned in the eighth section of the Act, equal in amount in the cases decided by him, whether his decision be in favor of, or against the claimant. And, to avoid misconstruction, the last clause of the fifth section of said Act, which authorizes the person holding a warrant for the arrest or detention of a Fugitive Slave to summon to his aid the posse comitatus, and which declares it to be the duty of all good citizens to assist him in its execution, ought to be so amended as to expressly limit the

authority and duty to cases in which there shall be resistance, or danger of resistance or rescue.

"4. That the laws for the suppression of the African Slave Trade, and especially those prohibiting the importation of Slaves into the United States, ought to be more effectual, and ought to be thoroughly executed; and all further enactments necessary to those ends ought to be promptly made."

The Peace Conference, or "Congress," it may here be mentioned, was called, by action of the Legislature of Virginia, to meet at Washington, February 4, 1861. The invitation was extended to all of such "States of this Confederacy * * * whether Slaveholding or Non-Slaveholding, as are willing to unite with Virginia in an earnest effort to adjust the present unhappy controversies in the spirit in which the Constitution was originally formed, and consistently with its principles, so as to afford to the people of the Slaveholding States adequate guarantees for the security of their rights"—such States to be represented by Commissioners "to consider, and, if practicable, agree upon some suitable adjustment."

The Conference, or "Congress," duly convened, at that place and time, and organized by electing ex-President John Tyler, of Virginia, its President. This Peace Congress—which comprised 133 Commissioners, representing the States of Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, Virginia, North Carolina, Tennessee, Kentucky, Missouri, Ohio, Indiana, Illinois, Iowa, Wisconsin and Kansas—remained in session until February 27, 1861—and then submitted the result of its labors to Congress, with the request that Congress "will submit it to Conventions in the States, as Article Thirteen of the Amendments to the Constitution of the United States, in the following shape:

"Section 1. In all the present territory of the United States, north of the parallel of 36 30' of north latitude, Involuntary Servitude, except in punishment of crime, is prohibited. In all the present territory south of that line, the status of Persons held to Involuntary Service or Labor, as it now exists, shall not be changed; nor shall any law be passed by Congress or the Territorial Legislature to hinder or prevent the taking of such Persons from any of the States of this Union to said Territory, nor to impair the Rights

arising from said relation; but the same shall be subject to judicial cognizance in the Federal Courts, according to the course of the common law. When any Territory north or south of said line, within such boundary as Congress may prescribe, shall contain a population equal to that required for a member of Congress, it shall, if its form of government be republican, be admitted into the Union on an equal footing with the original States, with or without Involuntary Servitude, as the Constitution of such State may provide.

"Section 2. No territory shall be acquired by the United States, except by discovery and for naval and commercial stations, depots, and transit routes, without the concurrence of a majority of all the Senators from States which allow Involuntary Servitude, and a majority of all the Senators from States which prohibit that relation; nor shall Territory be acquired by treaty, unless the votes of a majority of the Senators from each class of States hereinbefore mentioned be cast as a part of the two-thirds majority necessary to the ratification of such treaty.

"Section 3. Neither the Constitution, nor any amendment thereof, shall be construed to give Congress power to regulate, abolish, or control, within any State, the relation established or recognized by the laws thereof touching Persons held to Labor or Involuntary Service therein, nor to interfere with or abolish Involuntary Service in the District of Columbia without the consent of Maryland, and without the consent of the owners, or making the owners who do not consent just compensation; nor the power to interfere with or prohibit Representatives and others from bringing with them to the District of Columbia, retaining, and taking away, Persons so held to Labor or Service; nor the power to interfere with or abolish Involuntary Service in places under the exclusive jurisdiction of the United States within those States and Territories where the same is established or recognized; nor the power to prohibit the removal or transportation of Persons held to Labor or Involuntary Service in any State or Territory of the United States to any other State or Territory thereof where it is established or recognized by law or usage; and the right during transportation, by sea or river, of touching at ports, shores, and landings, and of landing in case of distress, shall exist; but not the right of transit in or through any State or Territory, or of sale or traffic, against the laws thereof. Nor shall Congress have power to authorize any higher rate of taxation on Persons held to

Labor or Service than on land. The bringing into the District of Columbia of Persons held to Labor or Service, for sale, or placing them in depots to be afterwards transferred to other places for sale as merchandize, is prohibited.

"Section 4. The third paragraph of the second section of the fourth article of the Constitution shall not be construed to prevent any of the States, by appropriate legislation, and through the action of their judicial and ministerial officers, from enforcing the delivery of Fugitives from Labor to the person to whom such Service or Labor is due.

"Section 5. The Foreign Slave Trade is hereby forever prohibited; and it shall be the duty of Congress to pass laws to prevent the importation of Slaves, Coolies, or Persons held to Service or Labor, into the United States and the Territories from places beyond the limits thereof.

"Section 6. The first, third, and fifth sections, together with this section of these amendments, and the third paragraph of the second section of the first article of the Constitution, and the third paragraph of the second section of the fourth article thereof, shall not be amended or abolished without the consent of all the States.

"Section 7. Congress shall provide by law that the United States shall pay to the owner the full value of the Fugitive from Labor, in all cases where the Marshal, or other officer, whose duty it was to arrest such Fugitive, was prevented from so doing by violence or intimidation from mobs or riotous assemblages, or when, after arrest, such Fugitive was rescued by like violence or intimidation, and the owner thereby deprived of the same; and the acceptance of such payment shall preclude the owner from further claim to such Fugitive. Congress shall provide by law for securing to the citizens of each State the privileges and immunities of citizens in the several States."

To spurn such propositions as these—with all the concessions to the Slave Power therein contained—was equivalent to spurning any and all propositions that could possibly be made; and by doing this, the Seceding States placed themselves—as they perhaps desired—in an utterly irreconcilable attitude, and hence, to a certain extent, which had not entered into their calculations, weakened their "Cause" in the eyes of many of their friends in the North, in the Border States, and in the World. They had

become Implacables. Practically considered, this was their great mistake. The Crittenden Compromise Resolutions covered and yielded to the Slaveholders of the South all and even more than they had ever dared seriously to ask or hope for, and had they been open to Conciliation, they could have undoubtedly carried that measure through both Houses of Congress and three-fourths of the States.

["Its advocates, with good reason, claimed a large majority of the People in its favor, and clamored for its submission to a direct popular vote. Had such a submission been accorded, it is very likely that the greater number of those who voted at all would have voted to ratify it. * * * The 'Conservatives,' so called, were still able to establish this Crittenden Compromise by their own proper strength, had they been disposed so to do. The President was theirs; the Senate strongly theirs; in the House, they had a small majority, as was evidenced in their defeat of John Sherman for Speaker. Had they now come forward and said, with authority: 'Enable us to pass the Crittenden Compromise, and all shall be peace and harmony,' they would have succeeded without difficulty. It was only through the withdrawal of pro-slavery members that the Republicans had achieved an unexpected majority in either House. Had those members chosen to return to the seats still awaiting them, and to support Mr. Crittenden's proposition, they could have carried it without difficulty."—Vol. 360, Greeley's Am. Conflict.]

But no, they wilfully withdrew their Congressional membership, State by State, as each Seceded, and refused all terms save those which involved an absolute surrender to them on all points, including the impossible claim of the "Right of Secession."

Let us now briefly trace the history of the Compromise measures in the two Houses of Congress.

The Crittenden-Compromise Joint-Resolution had been introduced in the Senate at the opening of its session and referred to a Select Committee of Thirteen, and subsequently, January 16th, 1861, having been reported back, came up in that body for action. On that day it was amended by inserting the words "now held or hereafter to be acquired" after the words "In all the territory of the United States," in the first line of Article I., so that it would read as given above. This amendment—by which not only in all territory then belonging to the United States, but also by implication in all that might thereafter be acquired, Slavery South of 36 30' was to be recognized—was agreed to by 29 yeas to 21 nays, as follows:

YEAS.—Messrs. Baker, Bayard, Benjamin, Bigler, Bragg, Bright, Clingman, Crittenden, Douglas, Fitch, Green, Gwin, Hemphill, Hunter, Iverson, Johnson of Tennessee, Kennedy, Lane, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury, Sebastian, Slidell and Wigfall—29.

NAYS.—Messrs. Anthony, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Latham, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade and Wilson—24.

The question now recurred upon an amendment, in the nature of a substitute, offered by Mr. Clark, to strike out the preamble of the Crittenden proposition and all of the resolutions after the word "resolved," and insert:

"That the provisions of the Constitution are ample for the preservation of the Union, and the protection of all the material interests of the Country; that it needs to be obeyed rather than amended; and that an extrication from our present dangers is to be looked for in strenuous efforts to preserve the peace, protect the public property, and enforce the laws, rather than in new Guarantees for particular interests, Compromises for particular difficulties, or Concessions to unreasonable demands.

"Resolved, That all attempts to dissolve the present Union, or overthrow or abandon the present Constitution, with the hope or expectation of constructing a new one, are dangerous, illusory, and destructive; that in the opinion of the Senate of the United States no such Reconstruction is practicable; and, therefore, to the maintenance of the existing Union and Constitution should be directed all the energies of all the departments of the Government, and the efforts of all good citizens."

Before reaching a vote on this amendment, Mr. Anthony, (January 16th) made a most conciliatory speech, pointing out such practical objections to the Crittenden proposition as occurred to his mind, and then, continuing, said: "I believe, Mr. President, that if the danger which menaces us is to be avoided at all, it must be by Legislation; which is more ready, more certain, and more likely to be satisfactory, than Constitutional Amendment. The main difficulty is the Territorial question. The demand of the Senators on the other side of the Chamber, and of those whom they represent, is that the territory south of the line of the Missouri Compromise shall be open to their

peculiar Property. All this territory, except the Indian Reservation, is within the limits of New Mexico; which, for a part of its northern boundary, runs up two degrees above that line. This is now a Slave Territory; made so by Territorial Legislation; and Slavery exists there, recognized and protected. Now, I am willing, as soon as Kansas can be admitted, to vote for the admission of New Mexico as a State, with such Constitution as the People may adopt. This disposes of all the territory that is adapted to Slave Labor or that is claimed by the South. It ought to settle the whole question. Surely if we can dispose of all the territory that we have, we ought not to quarrel over that which we have not, and which we have no very honest way of acquiring. Let us settle the difficulties that threaten us now, and not anticipate those which may never come. Let the public mind have time to cool * * *. In offering to settle this question by the admission of New Mexico, we of the North who assent to it propose a great Sacrifice, and offer a large Concession.

"* * * But we make the offer in a spirit of Compromise and good feeling, which we hope will be reciprocated. * * * I appeal to Senators on the other side, when we thus offer to bridge over full seven-eighths of the frightful chasm that separates us, will you not build the other eighth? When, with outstretched arms, we approach you so near that, by reaching out your hands you can clasp ours in the fraternal grasp from which they should never be separated, will you, with folded arms and closed eyes, stand upon extreme demands which you know we cannot accept, and for which, if we did, we could not carry our constituents? * * * Together our Fathers achieved the Independence of their Country; together they laid the foundations of its greatness and its glory; together they constructed this beautiful system under which it is our privilege to live, which it is our duty to preserve and to transmit. Together we enjoy that privilege; together we must perform that duty. I will not believe that, in the madness of popular folly and delusion, the most benignant Government that ever blessed humanity is to be broken up. I will not believe that this great Power which is marching with giant steps toward the first place among the Nations of the Earth, is to be turned 'backward on its mighty track.' There are no grievances, fancied or real, that cannot be redressed within the Union and under the Constitution. There are no differences between us that may not be

settled if we will take them up in the spirit of those to whose places we have succeeded, and the fruits of whose labors we have inherited."

And to this more than fair proposition to the Southerners—to this touching appeal in behalf of Peace—what was the response? Not a word! It seemed but to harden their hearts.

[Immediately after Mr. Anthony's appeal to the Southern Senators, a motion was made by Mr. Collamer to postpone the Crittenden Resolutions and take up the Kansas Admission Bill. Here was the chance at once offered to them to respond to that appeal—to make a first step, as it were. They would not make it. The motion was defeated by 25 yeas to 30 nays—Messrs. Benjamin and Slidell of Louisiana, Hemphill and Wigfall of Texas, Iverson of Georgia, and Johnson of Arkansas, voting "nay." The question at once recurred on the amendment of Mr. Clark—being a substitute for the Crittenden Resolutions, declaring in effect all Compromise unnecessary. To let that substitute be adopted, was to insure the failure of the Crittenden proposition. Yet these same six Southern Senators though present, refused to vote, and permitted the substitute to be adopted by 25 yeas to 23 nays. The vote of Mr. Douglas, who had been "called out for an instant into the ante-room, and deprived of the opportunity of voting"—as he afterwards stated when vainly asking unanimous consent to have his vote recorded among the nays—would have made it 25 yeas to 24 nays, had he been present and voting, while the votes of the six Southern Senators aforesaid, had they voted, would have defeated the substitute by 25 yeas to 30 nays. Then upon a direct vote on the Crittenden Compromise there would not only have been the 30 in its favor, but the vote of at least one Republican (Baker) in addition, to carry it, and, although that would not have given the necessary two-thirds, yet it would have been a majority handsome enough to have ultimately turned the scales, in both Houses, for a peaceful adjustment of the trouble, and have avoided all the sad consequences which so speedily befell the Nation. But this would not have suited the Treasonable purposes of the Conspirators. Ten days before this they had probably arranged the Programme in this, as well as other matters. Very certain it is that no time was lost by them and their friends in making the best use for their Cause of this vote, in the doubtful States of Missouri and North Carolina especially. In the St. Louis journals a Washington dispatch, purporting (untruly however) to come from Senators Polk and Green, was published to this effect.

"The Crittenden Resolutions were lost by a vote of 25 to 23. A motion of Mr. Cameron to reconsider was lost; and thus ends all hope of reconciliation. Civil War is now considered inevitable, and late accounts declare that Fort Sumter will be attacked without delay. The Missouri delegation recommend immediate Secession."

This is but a sample of other similar dispatches sent elsewhere. And the following dispatch, signed by Mr. Crittenden, and published in the Raleigh, N. C., Register, to quiet the excitement raised by the telegrams of the Conspirators, serves also to indicate that the friends of Compromise were not disheartened by their defeat:

"WASHINGTON, Jan. 17th, 9 P. M.

"In reply the vote against my resolutions will be reconsidered. Their failure was the result of the refusal of six Southern Senators to vote. There is yet good hope of success.

"JOHN J. CRITTENDEN."

There is instruction also to be drawn from the speeches of Senators Saulsbury, and Johnson of Tennessee, made fully a year afterward (Jan. 29-31, 1862) in the Senate, touching the defeat of the Crittenden Compromise by the Clark substitute at this time. Speaking of the second session of the Thirty-sixth Congress, Mr. Saulsbury said:

"At that session, while vainly striving with others for the adoption of those measures, I remarked in my place in the Senate that—

"If any Gibbon should hereafter write the Decline and Fall of the American Republic, he would date its fall from the rejection by the Senate of the propositions submitted by the Senator from Kentucky.'

"I believed so then, and I believe so now. I never shall forget, Mr. President, how my heart bounded for joy when I thought I saw a ray of hope for their adoption in the fact that a Republican Senator now on this floor came to me and requested that I should inquire of Mr. Toombs, who was on the eve of his departure for Georgia to take a seat in the Convention of that State which was to determine the momentous question whether she should continue a member of the Union or withdraw from it, whether, if the Crittenden propositions were adopted, Georgia would remain in the Union.

"Said Mr. Toombs:

"Tell him frankly for me that if those resolutions are adopted by the vote of any respectable number of Republican Senators, evidencing their good faith to advocate their ratification by their people, Georgia will not Secede. This is the position I assumed before the people of Georgia. I told them that if the party in power gave evidence of an intention to preserve our rights in the Union, we were bound to wait until their people could act.'

"I communicated the answer. The Substitute of the Senator from New Hampshire [Mr. Clark] was subsequently adopted, and from that day to this the darkness and the tempest and the storm have thickened, until thousands like myself, as good and as true Union men as you, Sir, though you may question our motives, have not only despaired but are without hope in the future."

To this speech, Mr. Johnson of Tennessee subsequently replied as follows in the United States Senate (Jan. 31, 1862)

"Sir, it has been said by the distinguished Senator from Delaware [Mr. Saulsbury] that the questions of controversy might all have been settled by Compromise. He dealt rather extensively in the Party aspect of the case, and seemingly desired to throw the onus of the present condition of affairs entirely on one side. He told us that, if so and so had been done, these questions could have been settled, and that now there would have been no War. He referred particularly to the resolution offered during the last Congress by the Senator from New Hampshire [Mr. Clark], and upon the vote on that he based his argument. * * * The Senator told us that the adoption of

the Clark amendment to the Crittenden Resolutions defeated the settlement of the questions of controversy; and that, but for that vote, all could have been peace and prosperity now. We were told that the Clark amendment defeated the Crittenden Compromise, and prevented a settlement of the controversy. On this point I will read a portion of the speech of my worthy and talented friend from California [Mr. Latham]; and when I speak of him thus, I do it in no unmeaning sense I intend that he, not I, shall answer the Senator from Delaware. * * * As I have said, the Senator from Delaware told us that the Clark amendment was the turning point in the whole matter; that from it had flowed Rebellion, Revolution, War, the shooting and imprisonment of people in different States—perhaps he meant to include my own. This was the Pandora's box that has been opened, out of which all the evils that now afflict the Land have flown. * * * My worthy friend from California [Mr. Latham], during the last session of Congress, made one of the best speeches he ever made. * *
* In the course of that speech, upon this very point he made use of these remarks:

"Mr. President, being last winter a careful eye-witness of all that occurred, I soon became satisfied that it was a deliberate, wilful design, on the part of some representatives of Southern States, to seize upon the election of Mr. Lincoln merely as an excuse to precipitate this revolution upon the Country. One evidence, to my mind, is the fact that South Carolina never sent her Senators here.'

"Then they certainly were not influenced by the Clark amendment.

"An additional evidence is, that when gentlemen on this floor, by their votes, could have controlled legislation, they refused to cast them for fear that the very Propositions submitted to this body might have an influence in changing the opinions of their constituencies. Why, Sir, when the resolutions submitted by the Senator from New Hampshire [Mr. Clark], were offered as an amendment to the Crittenden Propositions, for the manifest purpose of embarrassing the latter, and the vote taken on the 16th of January, 1861, I ask, what did we see? There were fifty-five Senators at that time upon this floor, in person. The Globe of the second Session, Thirty-Sixth Congress, Part I., page 409, shows that upon the call of the yeas and nays immediately preceding the vote on the substituting of Mr. Clark's amendment, there were fifty-five votes cast. I will read the vote from the Globe:

"YEAS—Messrs. Anthony, Baker, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson, and Wilson—25.

"NAYS—Messrs. Bayard, Benjamin, Bigler, Bragg, Bright, Clingman, Crittenden, Douglas, Fitch, Green, Gwin, Hemphill, Hunter, Iverson, Johnson of Arkansas, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury, Sebastian, Slidell and Wigfall—30.

"The vote being taken immediately after, on the Clark Proposition, was as follows:

"YEAS—Messrs. Anthony, Baker, Bingham, Cameron, Chandler, Clark, Collamer, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Hale, Harlan, King, Seward, Simmons, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson and Wilson—25.

"NAYS—Messrs. Bayard, Bigler, Bragg, Bright, Clingman, Crittenden, Fitch, Green, Gwin, Hunter, Johnson of Tennessee, Kennefly, Lane, Latham, Mason, Nicholson, Pearce, Polk, Powell, Pugh, Rice, Saulsbury and Sebastian—23.

"Six senators retained their seats and refused to vote, thus themselves allowing the Clark Proposition to supplant the Crittenden Resolution by a vote of twenty-five to twenty-three. Mr. Benjamin of Louisiana, Mr. Hemphill and Mr. Wigfall of Texas, Mr. Iverson of Georgia, Mr. Johnson of Arkansas, and Mr. Slidell of Louisiana, were in their seats, but refused to cast their votes.'

"I sat right behind Mr. Benjamin, and I am not sure that my worthy friend was not close by, when he refused to vote, and I said to him, 'Mr. Benjamin, why do you not vote? Why not save this Proposition, and see if we cannot bring the Country to it?' He gave me rather an abrupt answer, and said he would control his own action without consulting me or anybody else. Said I: 'Vote, and show yourself an honest man.' As soon as the vote was taken, he and others telegraphed South, 'We cannot get any Compromise.' Here were six Southern men refusing to vote, when the amendment would have been rejected by four majority if they had voted. Who, then, has brought these evils on the Country? Was it Mr. Clark? He was acting out his own policy; but with the help we had from the other side of the chamber, if all those on this side had been true to the Constitution and faithful to their constituents, and had acted with fidelity to the Country, the amendment of the Senator from New Hampshire could have been voted down, the defeat of which the Senator from Delaware says would have saved the Country. Whose fault was it? Who is responsible for it? * * * Who did it? SOUTHERN TRAITORS, as was said in the speech of the Senator from California. They did it. They wanted no Compromise. They accomplished their object by withholding their votes; and hence the Country has been involved in the present difficulty. Let me read another extract from this speech of the Senator from California

"I recollect full well the joy that pervaded the faces of some of those gentlemen at the result, and the sorrow manifested by the venerable Senator from Kentucky [Mr. Crittenden]. The record shows that Mr. Pugh, from Ohio, despairing of any Compromise between the extremes of ultra Republicanism and Disunionists, working manifestly for the same end, moved, immediately after the vote was announced, to lay the whole subject on the table. If you will turn to page 443, same volume, you will find, when, at a late period, Mr. Cameron, from Pennsylvania, moved to reconsider the vote, appeals having been made to sustain those who were struggling to preserve the Peace of the Country, that the vote was reconsidered; and when, at last, the Crittenden Propositions were submitted on the 2d day of March, these Southern States having 'nearly all Seceded, they were then lost but by one vote. Here is the vote:

"YEAS—Messrs. Bayard, Bigler, Bright, Crittenden, Douglas, Gwin, Hunter, Johnson of Tennessee, Kennedy, Lane, Latham, Mason, Nicholson, Polk, Pugh, Rice, Sebastian, Thomson and Wigfall—19.

"NAYS—Messrs. Anthony, Bingham, Chandler, Clark, Dixon, Doolittle, Durkee, Fessenden, Foot, Foster, Grimes, Harlan, King, Morrill, Sumner, Ten Eyck, Trumbull, Wade, Wilkinson and Wilson—20.

"If these Seceding Southern senators had remained, there would have passed, by a large vote (as it did without them), an amendment, by a two-third vote, forbidding Congress ever interfering with Slavery in the States. The Crittenden Proposition would have been indorsed by a majority vote, the subject finally going before the People, who have never yet, after consideration, refused Justice, for any length of time, to any portion of the Country.

"I believe more, Mr. President, that these gentlemen were acting in pursuance of a settled and fixed plan to break up and destroy this Government.'

"When we had it in our power to vote down the amendment of the Senator from New Hampshire, and adopt the Crittenden Resolutions, certain Southern Senators prevented it; and yet, even at a late day of the session, after they had Seceded, the Crittenden Proposition was only lost by one vote. If Rebellion and bloodshed and murder have followed, to whose skirts does the responsibility attach?

"What else was done at the very same session? The House of Representatives passed, and sent to this body, a Proposition to amend the Constitution of the United States, so as to prohibit Congress from ever hereafter interfering with the Institution of Slavery in the States, making that restriction a part of the Organic law of the Land. That Constitutional Amendment came here after the Senators from seven States had Seceded; and yet it was passed by a two-third vote in the Senate. Have you ever heard of any one of the States which had then Seceded, or which has since Seceded, taking up that Amendment to the Constitution, and saying they would ratify it, and make it a part of that instrument? No. Does not the whole history of this Rebellion tell you that it was Revolution that the Leaders wanted, that they started for, that they intended to have? The facts to which I have referred show how the Crittenden Proposition might have been carried; and when the Senators from the Slave States were reduced to one-fourth of the members of this body, the two Houses passed a Proposition to Amend the Constitution, so as to guarantee to the States perfect security in regard to the Institution of Slavery in all future time, and prohibiting Congress from legislating on the subject.

"But what more was done? After Southern Senators had treacherously abandoned the Constitution and deserted their posts here, Congress passed Bills for the Organization of three new Territories: Dakota, Nevada, and Colorado; and in the sixth section of each of those Bills, after conferring, affirmatively, power on the Territorial Legislature, it went on to exclude certain powers by using a negative form of expression; and it provided, among other things, that the Legislature should have no power to legislate so as to impair the right to private property; that it should lay no tax discriminating against one description of Property in favor of another; leaving the power on all these questions, not in the Territorial Legislature, but in the People when they should come to form a State Constitution.

"Now, I ask, taking the Amendment to the Constitution, and taking the three Territorial Bills, embracing every square inch of territory in the possession of the United States, how much of the Slavery question was left? What better Compromise could have been made? Still we are told that matters might have been Compromised, and that if we had agreed to Compromise, bloody Rebellion would not now be abroad in the Land. Sir, Southern Senators are responsible for it. They stood here with power to accomplish the result, and yet treacherously, and, I may say, tauntingly they left this chamber, and announced that they had dissolved their

connection with the Government. Then, when we were left in the hands of those whom we had been taught to believe would encroach upon our Rights, they gave us, in the Constitutional Amendment and in the three Territorial Bills, all that had ever been asked; and yet gentlemen talked Compromise!

"Why was not this taken and accepted? No; it was not Compromise that the Leaders wanted; they wanted Power; they wanted to Destroy this Government, so that they might have place and emolument for themselves. They had lost confidence in the intelligence and virtue and integrity of the People, and their capacity to govern themselves; and they intended to separate and form a government, the chief cornerstone of which should be Slavery, disfranchising the great mass of the People, of which we have seen constant evidence, and merging the Powers of Government in the hands of the Few. I know what I say. I know their feelings and their sentiments. I served in the Senate here with them. I know they were a Close Corporation, that had no more confidence in or respect for the People than has the Dey of Algiers. I fought that Close Corporation here. I knew that they were no friends of the People. I knew that Slidell and Mason and Benjamin and Iverson and Toombs were the enemies of Free Government, and I know so now. I commenced the war upon them before a State Seceded; and I intend to keep on fighting this great battle before the Country, for the perpetuity of Free Government. They seek to overthrow it, and to establish a Despotism in its place. That is the great battle which is upon our hands. * * * Now, the Senator from Delaware tells us that if that (Crittenden) Compromise had been made, all these consequences would have been avoided. It is a mere pretense; it is false. Their object was to overturn the Government. If they could not get the Control of this Government, they were willing to divide the Country and govern part of it."]

The Clark substitute was then agreed to, by 25 (Republican) yeas to 23 Democratic and Conservative (Bell-Everett) nays—6 Pro-Slavery Senators not voting, although present; and then, without division, the Crittenden Resolutions were tabled—Mr. Cameron, however, entering a motion to reconsider. Subsequently the action of the Senate, both on the Resolutions and Substitute, was reconsidered, and March 2d the matter came up again, as will hereafter appear.

Two days prior to this action in the Senate, Mr. Corwin, Chairman of the Select Committee of Thirty-three, reported to the House (January 14th), from a majority of that Committee, the following Joint Resolution:

"Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That all attempts on the parts of the Legislatures of any of the States to obstruct or hinder the recovery and surrender of Fugitives from Service or Labor, are in derogation of the Constitution of the United States, inconsistent with the comity and good neighborhood that should prevail among the several States, and dangerous to the Peace of the Union.

"Resolved, That the several States be respectfully requested to cause their Statutes to be revised, with a view to ascertain if any of them are in conflict with or tend to embarrass or hinder the execution of the Laws of the United States, made in pursuance of the second section of the Fourth Article of the Constitution of the United States for the delivery up of Persons held to Labor by the laws of any State and escaping therefrom; and the Senate and House of Representatives earnestly request that all enactments having such tendency be forthwith repealed, as required by a just sense of Constitutional obligations, and by a due regard for the Peace of the Republic; and the President of the United States is requested to communicate these resolutions to the Governors of the several States, with a request that they will lay the same before the Legislatures thereof respectively.

"Resolved, That we recognize Slavery as now existing in fifteen of the United States by the usages and laws of those States; and we recognize no authority, legally or otherwise, outside of a State where it so exists, to interfere with Slaves or Slavery in such States, in disregard of the Rights of their owners or the Peace of society.

"Resolved, That we recognize the justice and propriety of a faithful execution of the Constitution, and laws made in pursuance thereof, on the subject of Fugitive Slaves, or Fugitives from Service or Labor, and discountenance all mobs or hindrances to the execution of such laws, and that citizens of each State shall be entitled to all the privileges and immunities of citizens in the several States.

"Resolved, That we recognize no such conflicting elements in its composition, or sufficient cause from any source, for a dissolution of this Government; that we were not sent here to destroy, but to sustain and harmonize the Institutions of the Country, and to see that equal justice is done to all parts of the same; and finally, to perpetuate its existence on terms of equality and justice to all the States.

"Resolved, That a faithful observance, on the part of all the States, of all their Constitutional obligations to each other and to the Federal Government, is essential to the Peace of the Country.

"Resolved, That it is the duty of the Federal Government to enforce the Federal Laws, protect the Federal property, and preserve the Union of these

States.

"Resolved, That each State be requested to revise its Statutes, and, if necessary, so to amend the same as to secure, without Legislation by Congress, to citizens of other States traveling therein, the same protection as citizens of such States enjoy; and also to protect the citizens of other States traveling or sojourning therein against popular violence or illegal summary punishment, without trial in due form of law, for imputed crimes.

"Resolved, That each State be also respectfully requested to enact such laws as will prevent and punish any attempt whatever in such State to recognize or set on foot the lawless invasion of any other State or Territory.

"Resolved, That the President be requested to transmit copies of the foregoing resolutions to the Governors of the several States, with a request that they be communicated to their respective Legislatures."

This Joint Resolution, with amendments proposed to the same, came up in the House for action, on the 27th of February, 1861—the same day upon which the Peace Congress or Conference concluded its labors at Washington.

The Proposition of Mr. Burch, of California, was the first acted upon. It was to amend the Select Committee's resolutions, as above given, by adding to them another resolution at the end thereof, as follows:

"Resolved, etc., That it be, and is hereby, recommended to the several States of the Union that they, through their respective Legislatures, request the Congress of the United States to call a Convention of all the States, in accordance with Article Fifth of the Constitution, for the purpose of amending said Constitution in such manner and with regard to such subjects as will more adequately respond to the wants, and afford more sufficient Guarantees to the diversified and growing Interests of the Government and of the People composing the same."

This (Burch) amendment, however, was defeated by 14 yeas to 109 nays.

A Proposition of Mr. Kellogg, of Illinois, came up next for action. It was a motion to strike out all after the first word "That" in the Crittenden

Proposition—which had been offered by Mr. Clemens as a substitute for the Committee Resolutions—and insert the following:

"The following articles be, and are hereby, proposed and submitted as Amendments to the Constitution of the United States, which shall be valid, to all intents and purposes as part of said Constitution, when ratified by Conventions of three-fourths of the several States.

"Article XIII. That in all the territory now held by the United States situate north of latitude 36 30' Involuntary Servitude, except in the punishment for crime, is prohibited while such territory shall remain under a Territorial government; that in all the territory now held south of said line, neither Congress nor any Territorial Legislature shall hinder or prevent the emigration to said territory of Persons; held to Service from any State of this Union, when that relation exists by virtue of any law or usage of such State, while it shall remain in a Territorial condition; and when any Territory north or south of said line, within such boundaries as Congress may prescribe, shall contain the population requisite for a member of Congress, according to the then Federal ratio of representation of the People of the United States, it may, if its form of government be Republican, be admitted into the Union on an equal footing with the original States, with or without the relation of Persons held to Service and Labor, as the Constitution of such new State may provide.

"Article XIV. That nothing in the Constitution of the United States, or any amendment thereto, shall be so construed as to authorize any Department of the Government to in any manner interfere with the relation of Persons held to Service in any State where that relation exists, nor in any manner to establish or sustain that relation in any State where it is prohibited by the Laws or Constitution of such State. And that this Article shall not be altered or amended without the consent of every State in the Union.

"Article XV. The third paragraph of the second section of the Fourth Article of the Constitution shall be taken and construed to authorize and empower Congress to pass laws necessary to secure the return of Persons held to Service or Labor under the laws of any State, who may have escaped therefrom, to the party to whom such Service or Labor may be due.

"Article XVI. The migration or importation of Persons held to Service or Involuntary Servitude, into any State, Territory, or place within the United States, from any place or country beyond the limits of the United States or Territories thereof, is forever prohibited.

"Article XVII. No territory beyond the present limits of the United States and the Territories thereof, shall be annexed to or be acquired by the United States, unless by treaty, which treaty shall be ratified by a vote of two-thirds of the Senate."

The Kellogg Proposition was defeated by 33 yeas to 158 nays.

The Clemens Substitute was next voted on. This embraced the whole of the Crittenden Compromise Proposition, as amended in the Senate by inserting the provision as to all territory "hereafter acquired," with the addition of another proposed Article of Amendment to the Constitution, as follows:

"Article VII. Section I. The elective franchise and the Right to hold office, whether Federal, State, Territorial, or Municipal, shall not be exercised by Persons who are, in whole or in part, of the African Race.

"Section II. The United States shall have power to acquire from time to time districts of country in Africa and South America, for the colonization, at expense of the Federal Treasury, of such Free Negroes and Mulattoes as the several States may wish to have removed from their limits, and from the District of Columbia, and such other places as may be under the jurisdiction of Congress."

The Clemens Substitute (or Crittenden Measure, with the addition of said proposed Article VII.), was defeated by 80 yeas to 113 nays, and then the Joint Resolution of the Select Committee as heretofore given—after a vain attempt to table it—was passed by 136 yeas to 53 nays.

Immediately after this action, a Joint Resolution to amend the Constitution of the United States, which had also been previously reported by the Select Committee of Thirty-three, came before the House, as follows:

"Be it Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, (two-thirds of both Houses concurring), That the following Article be proposed to the Legislatures of the several States as an Amendment to the Constitution of the United States, which, when ratified by three-fourths of said Legislatures, shall be valid, to all intents and purposes, as a part of the said Constitution, namely:

"Article XII. No amendment of this Constitution having for its object any interference within the States with the relation between their citizens and those described in Section II. of the First Article of the Constitution as 'all other persons,' shall originate with any State that does not recognize that relation within its own limits, or shall be valid without the assent of every one of the States composing the Union."

Mr. Corwin submitted an Amendment striking out all the words after "namely;" and inserting the following:

"Article XII. No amendment shall be made to the Constitution which will authorize or give to Congress the power to abolish or interfere, within any State, with the Domestic Institutions thereof, including that of Persons held to Labor or Service by the laws of said State."

Amid scenes of great disorder, the Corwin Amendment was adopted by 120 yeas to 61 nays, and then the Joint Resolution as amended, was defeated (two-thirds not voting in the affirmative) by 123 yeas to 71 nays. On the following day (February 28th), amid still greater confusion and disorder, which the Speaker, despite frequent efforts, was unable to quell, that vote was reconsidered, and the Joint Resolution passed by 133 yeas to 65 nays—a result which, when announced was received with "loud and prolonged applause, both on the floor, and in the galleries."

On the 2d of March, the House Joint Resolution just given, proposing an Amendment to the Constitution, prohibiting Congress from touching Slavery within any State where it exists, came up in the Senate for action.

Mr. Pugh moved to substitute for it the Crittenden Proposition.

Mr. Doolittle moved to amend the proposed substitute (the Crittenden Proposition), by the insertion of the following, as an additional Article:

"Under this Constitution, as originally adopted, and as it now exists, no State has power to withdraw from the jurisdiction of the United States; but this Constitution, and all laws passed in pursuance of its delegated powers, are the Supreme Law of the Land, anything contained in any Constitution, Ordinance, or Act of any State, to the contrary notwithstanding."

Mr. Doolittle's amendment was lost by 18 yeas to 28 nays.

Mr. Pugh's substitute (the Crittenden Proposition), was lost by 14 yeas to 25 nays.

Mr. Bingham moved to amend the House Joint Resolution, by striking out all after the word "resolved," and inserting the words of the Clark Proposition as heretofore given, but the amendment was rejected by 13 yeas to 25 nays.

Mr. Grimes moved to strike out all after the word "whereas" in the preamble of the House Joint Resolution, and insert the following:

"The Legislatures of the States of Kentucky, New Jersey, and Illinois have applied to Congress to call a Convention for proposing Amendments to the Constitution of the United States: Therefore,

"Be it Resolved by the Senate and House of Representatives of the United States of America in Congress assembled, That the Legislatures of the other States be invited to take the subject of such a Convention into consideration, and to express their will on that subject to Congress, in pursuance of the Fifth Article of the Constitution."

This amendment was also rejected, by 14 yeas to 25 nays.

Mr. Johnson, of Arkansas, offered, as an amendment to the House Joint Resolution, the propositions submitted by the Peace Congress or Conference, but the amendment was disagreed to by 3 yeas to 34 nays.

The House Joint Resolution was then adopted by 24 yeas to 12 nays.

Subsequently the Crittenden Proposition came up again as a separate order, with the Clark substitute to it (once carried, but reconsidered), pending. The Clark substitute was then rejected by 14 yeas to 22 nays.

Mr. Crittenden then offered the Propositions of the Peace Congress, as a substitute for his own—and they were rejected by 7 yeas to 28 nays.

The Crittenden Proposition itself was then rejected, by 19 yeas to 20 nays.



JEFFERSON DAVIS.

CHAPTER IX.

SLAVERY'S SETTING, AND FREEDOM'S DAWN.

On that long last night of the 36th Congress—and of the Democratic Administration—to the proceedings of which reference was made in the preceding Chapter, several notable speeches were made, but there was substantially nothing done, in the line of Compromise. The only thing that had been accomplished was the passage, as we have seen, by two-thirds majority in both Houses, of the Joint Resolution proposing a Constitutional Amendment prohibiting Congress from meddling with Slavery in Slave States. There was no Concession nor Compromise in this, because Republicans, as well as Democrats, had always held that Congress had no such power. It is true that the Pro-slavery men had charged the Republicans with ultimate designs, through Congress, upon Slavery in the Slave States; and Mr. Crittenden pleaded for its passage as exhibiting a spirit, on their part, of reconciliation; that was all.

In his speech that night—that memorable and anxious night preceding the Inauguration of President Lincoln—the venerable Mr. Crittenden, speaking before the Resolution was agreed to, well sketched the situation when he said in the Senate: "It is an admitted fact that our Union, to some extent, has already been dismembered; and that further dismemberment is impending and threatened. It is a fact that the Country is in danger. This is admitted on all hands. It is our duty, if we can, to provide a remedy for this. We are, under the Constitution and by the election of the People, the great guardians, as well as the administrators of this Government. To our wisdom they have trusted this great chart. Remedies have been proposed; resolutions have been offered, proposing for adoption measures which it was thought would satisfy the Country, and preserve as much of the Union as remained to us at least, if they were not enough at once to recall the Seceding States to the Union. We have passed none of these measures. The

differences of opinion among Senators have been such that we have not been able to concur in any of the measures which have been proposed, even by bare majorities, much less by that two-thirds majority which is necessary to carry into effect some of the pacific measures which have been proposed. We are about to adjourn. We have done nothing. Even the Senate of the United States, beholding this great ruin around them, beholding Dismemberment and Revolution going on, and Civil War threatened as the result, have been able to do nothing; we have absolutely done nothing. Sir, is not this a remarkable spectacle? * * * How does it happen that not even a bare majority here, when the Country trusted to our hands is going to ruin, have been competent to devise any measure of public safety? How does it happen that we have not had unanimity enough to agree on any measure of that kind? Can we account for it to ourselves, gentlemen? We see the danger; we acknowledge our duty, and yet, with all this before us, we are acknowledging before the world that we can do nothing; acknowledging before the world, or appearing to all the world, as men who do nothing! Sir, this will make a strange record in the history of Governments and in the history of the world. Some are for Coercion; yet no army has been raised, no navy has been equipped. Some are for pacification; yet they have been able to do nothing; the dissent of their colleagues prevents them; and here we are in the midst of a falling Country, in the midst of a falling State, presenting to the eyes of the World the saddest spectacle it has ever seen. Cato is represented by Addison as a worthy spectacle, 'a great man falling with a falling State,' but he fell struggling. We fall with the ignominy on our heads of doing nothing, like the man who stands by and sees his house in flames, and says to himself, 'perhaps the fire will stop before it consumes all.'"

One of the strong pleas made in the Senate that night, was by Mr. Douglas, when he said: "The great issue with the South has been that they would not submit to the Wilmot proviso. The Republican Party affirmed the doctrine that Congress must and could prohibit Slavery in the Territories. The issue for ten years was between Non-intervention on the part of Congress, and prohibition by Congress. Up to two years ago, neither the Senator (Mason) from Virginia, nor any other Southern Senator, desired affirmative legislation to protect Slavery. Even up to this day, not one of them has proposed affirmative legislation to protect it. Whenever the

question has come up, they have decided that affirmative legislation to protect it was unnecessary; and hence, all that the South required on the Territorial question was 'hands off; Slavery shall not be prohibited by Act of Congress.' Now, what do we find? This very session, in view of the perils which surround the Country, the Republican Party, in both Houses of Congress, by a unanimous vote, have backed down from their platform and abandoned the doctrine of Congressional prohibition. This very week three Territorial Bills have been passed through both Houses of Congress without the Wilmot proviso, and no man proposed to enact it; not even one man on the other side of the Chamber would rise and propose the Wilmot proviso."

"In organizing three Territories," continued he, "two of them South of the very line where they imposed the Wilmot proviso twelve years ago, no one on the other side of the Chamber proposed it. They have abandoned the doctrine of the President-elect upon that point. He said, and it is on record, that he had voted for the Wilmot proviso forty-two times, and would do it forty-two times more if he ever had a chance. Not one of his followers this year voted for it once. The Senator from New York (Mr. Seward) the embodiment of the Party, sat quietly and did not propose it. What more? Last year we were told that the Slave Code of New Mexico was to be repealed. I denounced the attempted interference. The House of Representatives passed the Bill, but the Bill remains on your table; no one Republican member has proposed to take it up and pass it. Practically, therefore, the Chicago platform is abandoned; the Philadelphia platform is abandoned; the whole doctrine for which the Republican Party contended, as to the Territories, is abandoned, surrendered, given up. Non-intervention is substituted in its place. Then, when we find that, on the Territorial question, the Republican Party, by a unanimous vote, have surrendered to the South all they ask, the Territorial question ought to be considered pretty well settled. The only question left was that of the States; and after having abandoned their aggressive policy as to the Territories, a portion of them are willing to unite with us, and deprive themselves of the power to do it in the States."

"I submit," said he, "that these two great facts—these startling, tremendous facts—that they have abandoned their aggressive policy in the Territories, and are willing to give guarantees in the States, ought to be accepted as an evidence of a salutary change in Public Opinion at the North."

All I would ask now of the Republican Party is, that they would insert in the Constitution the same principle that they have carried out practically in the Territorial Bills for Colorado, Dakota, and Nevada, by depriving Congress of the power hereafter to do what there cannot be a man of them found willing to do this year; but we cannot ask them to back down too much. I think they have done quite as much within one year, within three months after they have elected a President, as could be expected."

That Douglas and his followers were also patriotically willing to sacrifice a favorite theory in the face of a National peril, was brought out, at the same time, by Mr. Baker, when he said to Mr. Douglas: "I desire to suggest (and being a little of a Popular Sovereignty man, it comes gracefully from me) that others of us have backed down too, from the idea that Congress has not the power to prohibit Slavery in the Territories; and we are proposing some of us in the Crittenden proposition, and some in the Amendment now before the Senate—to prohibit Slavery by the Constitution itself, in the Territories;"—and by Mr. Douglas, when he replied: "I think as circumstances change, the action of public men ought to change in a corresponding degree. * * * I am willing to depart from my cherished theory, by an Amendment to the Constitution by which we shall settle this question on the principles prescribed in the Resolutions of the Senator from Kentucky."

In the House, Mr. Logan, had, on the 5th of February, 1861, said:

"Men, Sir, North and South, who love themselves far better than their Country, have brought us to this unhappy condition. * * * Let me say to gentlemen, that I will go as far as any man in the performance of a Constitutional duty to put down Rebellion, to suppress Insurrection, and to enforce the laws; but when we undertake the performance of these duties, let us act in such a manner as will be best calculated to preserve and not destroy the Government, and keep ourselves within the bounds of the Constitution. * * * Sir, I have always denied, and do yet deny, the Right of Secession. There is no warrant for it in the Constitution. It is wrong, it is unlawful, unconstitutional, and should be called by the right name, Revolution. No good, Sir, can result from it, but much mischief may. It is no remedy for any grievance.

"I hold that all grievances can be much easier redressed inside the Union than out of it. * * * If a collision must ensue between this Government and any of our own people, let it come when every other means of settlement has been tried and exhausted; and not then, except when the Government shall be compelled to repel assaults for the protection of its property, flag, and the honor of the Country. * * *

"I have been taught to believe that the preservation of this glorious Union, with its broad flag waving over us, as the shield for our protection on land and on sea, is paramount to all the Parties and platforms that ever have existed, or ever can exist. I would, to-day, if I had the power, sink my own Party, and every other one, with all their platforms, into the vortex of ruin, without heaving a sigh or shedding a tear, to save the Union, or even stop the Revolution where it is."

After enumerating the various propositions for adjustment, then pending in the House, to wit: that of Senator Crittenden; that of Senator Douglas; that of the Committee of Thirty-three; that of the Border States; and those of Representatives McClernand, Kellogg, and Morris, of Illinois, Mr. Logan took occasion to declare that "in a crisis like this" he was "willing to give his support to any of them," but his preference was for that of Mr. Morris.

Said he: "He (Morris) proposes that neither Congress nor a Territorial Legislature shall interfere with Slavery in the Territories at all; but leaves the people, when they come to form their State Constitution, to determine the question for themselves. I think this is the best proposition, because it is a fair concession on all sides. The Republicans give up their Congressional intervention; those who are styled 'Squatter Sovereigns' give up their Territorial legislative policy; and the Southern (Slave) protectionists give up their protection-intervention policy; thus every Party yields something. With this proposition as an Article in the Constitution, it would satisfy every conservative man in this Union, both North and South, I do seriously and honestly believe.

"Having indicated my preference of these propositions, and my reasons for that preference, I have said all I desire to say on the point, except to repeat again, that I will willingly vote for any of them, or make any other

sacrifice necessary to save the Union. It makes no kind of difference to me what the sacrifice; if it will save my Country, I am ready to make it." * * *

"There are some in this Hall," said he, "that are almost ready to strike the Party fetters from their limbs, and assist in measures of Peace. Halt not; take the step; be independent and free at once! Let us overcome Party passion and error; allow virtue and good sense in this fateful hour to be triumphant; let us invoke Deity to interpose and prepare the way for our Country's escape from the perils by which we are now surrounded; and in view of our present greatness and future prospects, our magnificent and growing cities, our many institutions of learning, our once happy and prosperous People, our fruitful fields and golden forests, our enjoyment of all civil and religious blessings—let Parties die that these be preserved. Such noble acts of patriotism and concession, on your part, would cause posterity to render them illustrious, and pause to contemplate the magnitude of the events with which they were connected. * * * In the name of the patriotic sires who breasted the storms and vicissitudes of the Revolution; by all the kindred ties of this Country; in the name of the many battles fought for your Freedom; in behalf of the young and the old; in behalf of the Arts and Sciences, Civilization, Peace, Order, Christianity, and Humanity, I appeal to you to strike from your limbs the chains that bind them! Come forth from that loathsome prison, Party Caucus; and in this hour—the most gloomy and disheartening to the lovers of Free Institutions that has ever existed during our Country's history—arouse the drooping spirits of our countrymen, by putting forth your good strong arms to assist in steadying the rocking pillars of the mightiest Republic that has ever had an existence."

"Mr. Speaker," continued he, "a word or two more, and I am done. Revolution stalks over the Land. States have rebelled against the constituted authorities of the Union, and now stand, sword in hand, prepared to vindicate their new nationality. Others are preparing to take a similar position. Rapidly transpiring events are crowding on us with fearful velocity. Soon, circumstances may force us into an unnatural strife, in which the hand of brother shall be uplifted against brother, and father against son. My God, what a spectacle! If all the evils and calamities that have ever happened since the World began, could be gathered in one great Catastrophe, its horrors could not eclipse, in their frightful proportions, the

Drama that impends over us. Whether this black cloud that drapes in mourning the whole political heavens, shall break forth in all the frightful intensity of War, and make Christendom weep at the terrible atrocities that will be enacted—or, whether it will disappear, and the sky resume its wonted serenity, and the whole Earth be irradiated by the genial sunshine of Peace once more—are the alternatives which this Congress, in my judgment, has the power to select between."

In this same broad spirit, Mr. Seward, in his great speech of January 12th, had said: "Republicanism is subordinate to Union, as everything else is and ought to be—Republicanism, Democracy, every other political name and thing; all are subordinate—and they ought to disappear in the presence of the great question of Union." In another part of it, he had even more emphatically said: "I therefore * * * avow my adherence to the Union in its integrity and with all its parts, with my friends, with my Party, with my State, with my Country, or without either, as they may determine, in every event, whether of Peace or War, with every consequence of honor or dishonor, of life or death. Although I lament the occasion, I hail with cheerfulness the duty of lifting up my voice among distracted debates, for my whole Country and its inestimable Union." And as showing still more clearly the kindly and conciliatory attitude of the great Republican leader, when speaking of those others who seemed to be about to invoke revolutionary action to oppose—and overthrow the Government—he said: "In such a case I can afford to meet prejudice with Conciliation, exaction with Concession which surrenders no principle, and violence with the right hand of Peace."

In the House of Representatives, too, the voice of patriotism was often heard through the loud clamor and disorder of that most disorderly and Treason-uttering session—was heard from the lips of statesmen, who rose high above Party, in their devotion to the Union. The calm, dispassionate recital by Henry Winter Davis (of Maryland), of the successive steps by which the Southern leaders had themselves created that very "North" of whose antagonism they complained, was one of the best of these, in some respects. He was one of the great Select Committee of Thirty-three, and it was (February 5th) after the Resolutions, heretofore quoted, had been reported by it, that he condensed the history of the situation into a nutshell, as follows:

"We are at the end of the insane revel of partisan license which, for thirty years, has, in the United States, worn the mask of Government. We are about to close the masquerade by the dance of death. The Nations of the World look anxiously to see if the People, ere they tread that measure, will come to themselves.

* * * * *

"Southern politicians have created a North. Let us trace the process and draw the moral.

"The laws of 1850 calmed and closed the Slavery agitation; and President Pierce, elected by the almost unanimous voice of the States, did not mention Slavery in his first two Messages. In 1854, the repeal of the Missouri Compromise, at the instance of the South, reopened the agitation.

"Northern men, deserted by Southern Whigs, were left to unite for self-defense.

"The invasion of Kansas, in 1855 and 1856, from Missouri; the making a Legislature and laws for that Territory, by the invaders; still further united the Northern people. The election of 1856 measured its extent.

"The election of Mr. Buchanan and his opening policy in Kansas, soothed the irritation, and was rapidly demoralizing the new Party, when the Pro-Slavery Party in Kansas perpetrated, and the President and the South accepted, the Lecompton fraud, and again united the North more resolutely in resistance to that invasion of the rights of self-government.

"The South for the first time failed to dictate terms; and the People vindicated by their votes the refusal of the Constitution.

"Ere this result was attained, the opinions of certain Judges of the Supreme Court scattered doubts over the law of Slavery in the Territories; the South, while repudiating other decisions, instantly made these opinions the criterion of faithfulness to the Constitution; while the North was agitated by this new sanction of the extremest pretensions of their opponents.

"The South did not rest satisfied with their Judicial triumph.

"Immediately the claim was pressed for protection by Congress to Slavery, declared by the Supreme Court, they said, to exist in all the Territories.

"This completed the union of the Free States in one great defensive league; and the result was registered in November. That result is now itself become the starting point of new agitation—the demand of new rights and new guarantees. The claim to access to the Territories was followed by the claim to Congressional protection, and that is now followed by the hitherto unheard of claim to a Constitutional Amendment establishing Slavery, not merely in territory now held, but in all hereafter held from the line of 36 30' to Cape Horn, while the debate foreshadows in the distance the claim of the right of transit and the placing of property in Slaves in all respects on the footing of other property—the topics of future agitation. How long the prohibition of the importation of Slaves will be exempted from the doctrine of equality, it needs no prophet to tell.

"In the face of this recital, let the imputation of autocratic and tyrannical aspirations cease to be cast on the people of the Free States; let the Southern people dismiss their fears, return to their friendly confidence in their fellow-citizens of the North, and accept, as pledges of returning Peace, the salutary amendments of the law and the Constitution offered as the first fruits of Reconciliation."

But calmness, kindness, and courtesy were alike thrown away in both Houses upon the implacable Southern leaders. As the last day of that memorable session, which closed in the failure of all peaceful measures to restore the Union, slowly dawned—with but a few hours lacking of the time when Mr. Lincoln would be inaugurated President of the United States—Mr. Wigfall thought proper, in the United States Senate, to sneer at him as "an ex-rail-splitter, an ex-grocery keeper, an ex-flatboat captain, and an ex-Abolition lecturer"—and proceeded to scold and rant at the North with furious volubility.

"Then, briefly," said he, "a Party has come into power that represents the antagonism to my own Section of the Country. It represents two million men who hate us, and who, by their votes for such a man as they have elected, have committed an overt act of hostility. That they have done."

"You have won the Presidency," said he, to the Republicans, "and you are now in the situation of the man who had won the elephant at a raffle. You do not know what to do with the beast now that you have it; and one-half of you to-day would give your right arms if you had been defeated. But you succeeded, and you have to deal with facts. Our objection to living in this Union, and therefore the difficulty of reconstructing it, is not your Personal Liberty bills, not the Territorial question, but that you utterly and wholly misapprehend the Form of Government."

"You deny," continued he, "the Sovereignty of the States; you deny the right of self-government in the People; you insist upon Negro Equality; your people interfere impertinently with our Institutions and attempt to subvert them; you publish newspapers; you deliver lectures; you print pamphlets, and you send them among us, first, to excite our Slaves to insurrection against their masters, and next, to array one class of citizens against the other; and I say to you, that we cannot live in peace, either in the Union or out of it, until you have abolished your Abolition societies; not, as I have been misquoted, abolish or destroy your school-houses; but until you have ceased in your schoolhouses teaching your children to hate us; until you have ceased to convert your pulpits into hustings; until you content yourselves with preaching Christ, and Him crucified, and not delivering political harangues on the Sabbath; until you have ceased inciting your own citizens to make raids and commit robberies; until you have done these things we cannot live in the same Union with you. Until you do these things, we cannot live out of the Union at Peace."

Such were the words—the spiteful, bitter words—with which this chosen spokesman of the South saluted the cold and cloudy dawn of that day which was to see the sceptre depart from the hands of the Slave Power forever.

A few hours later, under the shadow of the main Pastern Portico of the Capitol at Washington—with the retiring President and Cabinet, the Supreme Court Justices, the Foreign Diplomatic Corps, and hundreds of Senators, Representatives and other distinguished persons filling the great platform on either side and behind them—Abraham Lincoln stood bareheaded before full thirty thousand people, upon whose uplifted faces the unveiled glory of the mild Spring sun now shone—stood reverently before that far greater and mightier Presence termed by himself, "My

rightful masters, the American People"—and pleaded in a manly, earnest, and affectionate strain with "such as were dissatisfied," to listen to the "better angels" of their nature.

Temperate, reasonable, kindly, persuasive—it seems strange that Mr. Lincoln's Inaugural Address did not disarm at least the personal resentment of the South toward him, and sufficiently strengthen the Union-loving people there, against the red-hot Secessionists, to put the "brakes" down on Rebellion. Said he:

"Apprehension seems to exist among the people of the Southern States, that by the accession of a Republican Administration, their Property and their Peace and personal security are to be endangered. There has never been any reasonable cause for such apprehension. Indeed, the most ample evidence to the contrary has all the while existed, and been open to their inspection. It is found in nearly all the published speeches of him who now addresses you. I do but quote from one of those speeches, when I declare that 'I have no purpose, directly or indirectly, to interfere with the Institution of Slavery in the States where it exists.' I believe I have no lawful right to do so; and I have no inclination to do so. Those who nominated and elected me, did so with the full knowledge that I had made this, and many similar declarations, and had never recanted them. * * *

"I now reiterate these sentiments; and in doing so, I only press upon the public attention the most conclusive evidence of which the case is susceptible, that the Property, Peace, and Security of no Section are to be in any wise endangered by the now incoming Administration. I add, too, that all the protection which, consistently with the Constitution and the laws, can be given, will be cheerfully given to all the States, when lawfully demanded, for whatever cause—as cheerfully to one Section as to another.

"I take the official oath to-day with no mental reservations, and with no purpose to construe the Constitution or laws by any hypercritical rules. * *

*

"A disruption of the Federal Union, heretofore only menaced, is now formidably attempted. I hold that, in contemplation of Universal Law, and of the Constitution, the Union of these States is perpetual. Perpetuity is implied, if not expressed, in the fundamental law of all National

Governments. It is safe to assert that no Government proper ever had a provision in its organic law for its own termination. Continue to execute all the express provisions of our National Constitution, and the Union will endure forever—it being impossible to destroy it, except by some action not provided for in the instrument itself.

"Again, if the United States be not a Government proper, but an Association of States in the nature of a contract merely, can it, as a contract, be peaceably unmade by less than all the parties who made it? One party to a contract may violate it—break it, so to speak; but does it not require all, to lawfully rescind it?

"Descending from these general principles, we find the proposition that, in legal contemplation, the Union is perpetual, confirmed by the history of the Union itself. The Union is much older than the Constitution. It was formed, in fact, by the Articles of Association in 1774. It was matured and continued in the Declaration of Independence in 1776. It was further matured, and the faith of all the then thirteen States expressly plighted and engaged that it should be perpetual, by the Articles of Confederation, in 1778; and, finally, in 1787, one of the declared objects, for ordaining and establishing the Constitution, was 'to form a more perfect Union.' But, if destruction of the Union by one, or by a part only, of the States, be lawfully possible, the Union is less perfect than before, the Constitution having lost the vital element of perpetuity.

"It follows, from these views, that no State, upon its own mere motion, can lawfully get out of the Union; that Resolves and Ordinances to that effect, are legally void; and that acts of violence within any State or States against the authority of the United States, are insurrectionary or revolutionary, according to circumstances.

"I therefore consider that, in view of the Constitution and the laws, the Union is unbroken, and, to the extent of my ability, I shall take care, as the Constitution itself expressly enjoins upon me, that the laws of the Union shall be faithfully executed in all the States. * * *

"I trust this will not be regarded as a menace, but only as the declared purpose of the Union, that it will Constitutionally defend and maintain itself.

"In doing this, there need be no bloodshed or violence, and there shall be none, unless it is forced upon the National Authority.

"The power confided to me will be used to hold, occupy, and possess the property and places belonging to the Government, and to collect the duties and imposts; but, beyond what may be necessary for these objects, there will be no invasion, no using of force against or among the People anywhere.

"The mails, unless repelled, will continue to be furnished in all parts of the Union.

* * * * *

"Is there such perfect identity of interests among the States to compose a new Union, as to produce harmony only, and prevent renewed Secession? Plainly, the central idea of Secession is the essence of anarchy. A majority, held in restraint by Constitutional checks and limitations and always changing easily with deliberate changes of popular opinions and sentiments, is the only true sovereign of a Free People. Whoever rejects it, does, of necessity, fly to anarchy, or to despotism. Unanimity is impossible; the rule of a minority, as a permanent arrangement, is wholly inadmissible; so that, rejecting the majority principle, anarchy or despotism in some form is all that is left.

* * * * *

"Physically speaking, we cannot separate. We cannot remove our respective Sections from each other, nor build an impassable wall between them. A husband and wife may be divorced, and go out of the presence and beyond the reach of each other; but the different parts of our Country cannot do this. They cannot but remain face to face; and intercourse, either amicable or hostile, must continue between them. Is it possible, then, to make that intercourse more advantageous or more satisfactory after separation than before? Can aliens make treaties, easier than friends can make laws? Can treaties be more faithfully enforced between aliens, than laws can among friends? Suppose you go to War, you cannot fight always; and when, after much loss on both sides, and no gain on either you cease

fighting, the identical old questions, as to terms of intercourse, are again upon you.

"This Country, with its Institutions, belongs to the People who inhabit it. Whenever they shall grow weary of the existing Government, they can exercise their Constitutional right of amending it, or their Revolutionary right to dismember or overthrow it. I cannot be ignorant of the fact that many worthy and patriotic citizens are desirous of having the National Constitution amended. While I make no recommendations of Amendments, I fully recognize the rightful authority of the People over the whole subject, to be exercised in either of the modes prescribed in the instrument itself; and I should, under existing circumstances, favor, rather than oppose, a fair opportunity being afforded the People to act upon it. * * *

"The Chief Magistrate derives all his authority from the People, and they have conferred none upon him to fix terms for the separation of the States. The People themselves can do this also, if they choose; but the Executive, as such, has nothing to do with it. His duty is to administer the present Government, as it came to his hands, and to transmit it, unimpaired by him, to his successor.

* * * * *

" * * * While the People retain their virtue and vigilance, no Administration, by any extreme of weakness or folly, can very seriously injure the Government in the short space of four years.

"My countrymen, one and all, think calmly and well upon this whole subject. Nothing valuable can be lost by taking time. If there be an object to hurry any of you, in hot haste, to a step which you would never take deliberately, that object will be frustrated by taking time; but no good object can be frustrated by it. Such of you as are now dissatisfied, still have the old Constitution unimpaired, and, on the sensitive point, the laws of your own framing under it; while the new Administration will have no immediate power, if it would, to change either. If it were admitted that you who are dissatisfied, hold the right side in the dispute, there still is no single good reason for precipitate action. Intelligence, patriotism, Christianity, and a firm reliance on Him who has never yet forsaken this favored Land, are still competent to adjust, in the best way, all our present difficulty.

"In your hands, my dissatisfied fellow-countrymen, and not in mine, is the momentous issue of Civil War. The Government will not assault you. You can have no conflict without being yourselves the aggressors. You have no oath registered in Heaven to destroy the Government, while I shall have the most solemn one to 'preserve, protect, and defend it'.

"I am loath to close. We are not enemies, but friends. We must not be enemies. Though passion may have strained, it must not break our bonds of affection. The mystic chords of memory, stretching from every battle-field and patriot grave to every living heart and hearthstone, all over this broad Land, will yet swell the chorus of the Union, when again touched, as surely they will be, by the better angels of our nature."

Strange, indeed, must have been the thoughts that crowded through the brain and oppressed the heart of Abraham Lincoln that night—his first at the White House!

The city of Washington swarmed with Rebels and Rebel sympathizers, and all the departments of Government were honey-combed with Treason and shadowed with treachery and espionage. Every step proposed or contemplated by the Government would be known to the so-called Government of the Confederate States almost as soon as thought of. All means, to thwart and delay the carrying out of the Government's purposes, that the excuses of routine and red-tape admitted of, would be used by the Traitors within the camp, to aid the Traitors without.

No one knew all this, better than Mr. Lincoln. With no Army, no Navy, not even a Revenue cutter left—with forts and arsenals, ammunition and arms in possession of the Rebels, with no money in the National Treasury, and the National credit blasted—the position must, even to his hopeful nature, have seemed at this time desperate. To be sure, despite threats, neither few nor secret, which had been made, that he should not live to be inaugurated, he had passed the first critical point—had taken the inaugural oath—and was now duly installed in the White House. That was something, of course, to be profoundly thankful for. But the matter regarded by him of larger moment—the safety of the Union—how about that?

How that great, and just, and kindly brain, in the dim shadows of that awful first night at the White House, must have searched up and down and

along the labyrinths of history and "corridors of time," everywhere in the Past, for any analogy or excuse for the madness of this Secession movement—and searched in vain!

With his grand and abounding faith in God, how Abraham Lincoln must have stormed the very gates of Heaven that night with prayer that he might be the means of securing Peace and Union to his beloved but distracted Country! How his great heart must have been racked with the alternations of hope and foreboding—of trustfulness and doubt! Anxiously he must have looked for the light of the morrow, that he might gather from the Press, the manner in which his Inaugural had been received. Not that he feared the North—but the South; how would the wayward, wilful, passionate South, receive his proffered olive-branch?

Surely, surely,—thus ran his thoughts—when the brave, and gallant, and generous people of that Section came to read his message of Peace and Good-will, they must see the suicidal folly of their course! Surely their hearts must be touched and the mists of prejudice dissolved, so that reason would resume her sway, and Reconciliation follow! A little more time for reflection would yet make all things right. The young men of the South, fired by the Southern leaders' false appeals, must soon return to reason. The prairie fire is terrible while it sweeps along, but it soon burns out. When the young men face the emblem of their Nation's glory—the flag of the land of their birth—then will come the reaction and their false leaders will be hurled from place and power, and all will again be right. Yea, when it comes to firing on the old, old flag, they will not, cannot, do it! Between the Compromise within their reach, and such Sacrilege as this, they cannot waver long.

So, doubtless, all the long night, whether waking or sleeping, the mind of this true-hearted son of the West, throbbed with the mighty weight of the problem entrusted to him for solution, and the vast responsibilities which he had just assumed toward his fellow-men, his Nation, and his God.

And when, at last, the long lean frame was thrown upon the couch, and "tired Nature's sweet restorer" held him briefly in her arms, the smile of hopefulness on the wan cheek told that, despite all the terrible difficulties of the situation, the sleeper was sustained by a strong and cheerful belief in the

Providence of God, the Patriotism of the People, and the efficacy of his Inaugural Peace-offering to the South. But alas, and alas, for the fallibility of human judgment and human hopes! Instead of a message of Peace, the South chose to regard it as a message of Menace;* and it was not received in a much better spirit by some of the Northern papers, which could see no good in it—"no Union spirit in it"—but declared that it breathed the spirit of Sectionalism and mischief, and "is the knell and requiem of the Union, and the death of hope."

["Mr. Lincoln fondly regarded his Inaugural as a resistless proffering of the olive branch to the South; the Conspirators everywhere interpreted it as a challenge to War."—Greeley's *Am. Conflict*, vol. i., p. 428.]

Bitter indeed must have been President Lincoln's disappointment and sorrow at the reception of his Inaugural. With the heartiest forgiveness, in the noblest spirit of paternal kindness, he had generously held out his arms, as far as they could reach, to clasp to his heart—to the great heart of the Union—the rash children of the South, if they would but let him. It was more with sorrow, than in anger, that he looked upon their contemptuous repulsion of his advances; and his soul still reproachfully yearned toward these his Southern brethren, as did that of a higher than he toward His misguided brethren, when He cried: "O Jerusalem, Jerusalem, thou that killest the prophets, and stonest them which are sent unto thee, how often would I have gathered thy children together, even as a hen gathereth her chickens under her wings, and ye would not!"

On the day following his Inauguration, President Lincoln sent to the United States Senate the names of those whom he had chosen to constitute his Cabinet, as follows: William H. Seward, of New York, Secretary of State; Salmon P. Chase, of Ohio, Secretary of the Treasury; Simon Cameron, of Pennsylvania, Secretary of War; Gideon Welles, of Connecticut, Secretary of the Navy; Caleb B. Smith, of Indiana, Secretary of the Interior; Edward Bates, of Missouri, Attorney General; and Montgomery Blair, of Maryland, Postmaster General.

On the other hand, the President of the rebellious Confederacy, Jefferson Davis, had partly constituted his Cabinet already, as follows: Robert Toombs, of Georgia, Secretary of State; Charles G. Memminger, of South Carolina, Secretary of the Treasury; Leroy Pope Walker, of Alabama,

Secretary of War; to whom he afterwards added: Stephen R. Mallory, of Florida, Secretary of the Navy; and John H. Reagan, of Texas, Postmaster-General.

CHAPTER X.

THE WAR-DRUM "ON TO WASHINGTON".

Scarcely one week had elapsed after the Administration of Mr. Lincoln began, when (March 11th) certain "Commissioners of the Southern Confederacy" (John Forsyth, of Alabama, and Martin J. Crawford, of Georgia), appeared at Washington and served a written request upon the State Department to appoint an early day when they might present to the President of the United States their credentials "from the Government of the Confederate States of America" to the Government of the United States, and open "the objects of the mission with which they are charged."

Secretary Seward, with the President's sanction, declined official intercourse with Messrs. Forsyth and Crawford, in a "Memorandum" (March 15th) reciting their request, etc., in which, after referring to President Lincoln's Inaugural Address—forwarded to them with the "Memorandum" he says: "A simple reference will be sufficient to satisfy those gentlemen that the Secretary of State, guided by the principles therein announced, is prevented altogether from admitting or assuming that the States referred to by them have, in law or in fact, withdrawn from the Federal Union, or that they could do so in the manner described by Messrs. Forsyth and Crawford, or in any other manner than with the consent and concert of the People of the United States, to be given through a National Convention, to be assembled in conformity with the provisions of the Constitution of the United States. Of course, the Secretary of State cannot act upon the assumption, or in any way admit, that the so-called Confederate States constitute a Foreign Power, with whom diplomatic relations ought to be established."

On the 9th of April, Messrs. Forsyth, Crawford and Roman—as "Commissioners of the Southern Confederacy"—addressed to Secretary

Seward a reply to the "Memorandum" aforesaid, in which the following passage occurs:

"The undersigned, like the Secretary of State, have no purpose to 'invite or engage in discussion' of the subject on which their two Governments are so irreconcilably at variance. It is this variance that has broken up the old Union, the disintegration of which has only begun.

"It is proper, however, to advise you that it were well to dismiss the hopes you seem to entertain that, by any of the modes indicated, the people of the Confederate States will ever be brought to submit to the authority of the Government of the United States. You are dealing with delusions, too, when you seek to separate our people from our Government, and to characterize the deliberate, Sovereign act of that people as a 'perversion of a temporary and partisan excitement.' If you cherish these dreams, you will be awakened from them, and find them as unreal and unsubstantial as others in which you have recently indulged.

"The undersigned would omit the performance of an obvious duty were they to fail to make known to the Government of the United States that the people of the Confederate States have declared their independence with a full knowledge of all the responsibilities of that act, and with as firm a determination to maintain it by all the means with which nature has endowed them as that which sustained their fathers when they threw off the authority of the British Crown.

"The undersigned clearly understand that you have declined to appoint a day to enable them to lay the objects of the mission with which they are charged, before the President of the United States, because so to do would be to recognize the independence and separate nationality of the Confederate States. This is the vein of thought that pervades the memorandum before us.

"The truth of history requires that it should distinctly appear upon the record, that the undersigned did not ask the Government of the United States to recognize the independence of the Confederate States. They only asked audience to adjust, in a spirit of amity and peace, the new relations springing from a manifest and accomplished revolution in the Government of the late Federal Union.

"Your refusal to entertain these overtures for a peaceful solution, the active naval and military preparation of this Government, and a formal notice to the Commanding General of the Confederate forces in the harbor of Charleston that the President intends to provision Fort Sumter by forcible means, if necessary, are viewed by the undersigned, and can only be received by the World, as a Declaration of War against the Confederate States; for the President of the United States knows that Fort Sumter cannot be provisioned without the effusion of blood.

"The undersigned, in behalf of their Government and people, accept the gage of battle thus thrown down to them, and, appealing to God and the judgment of mankind for the righteousness of their Cause, the people of the Confederate States will defend their liberties to the last, against this flagrant and open attempt at their subjugation to Sectional power."

Let us now, for a moment, glance at the condition of Fort Sumter, and of the Government with regard to it:

On the 5th of March, the day after President Lincoln had taken his oath of office, there was placed in his hands a letter of Major Anderson, commanding at Fort Sumter, in which that officer, under date of the 28th of February, expressed the opinion that "reinforcements could not be thrown into that fort within the time for his relief rendered necessary by the limited supply of provisions, and with a view of holding possession of the same, with a force of less than twenty thousand good and well-disciplined men."

[President Lincoln's first Message, July 4, 1861.]

Lieutenant-General Winfield Scott concurred in that opinion, and as the provisions in the Fort would be exhausted before any such force could be raised and brought to the ground, evacuation and safe withdrawal of the Federal garrison from the Fort became a Military necessity, and was so regarded by the Administration.

"It was believed, however"—in the language of Mr. Lincoln himself, in his first Message to Congress—"that to so abandon that position, under the circumstances, would be utterly ruinous: that the necessity under which it was to be done would not be fully understood; that by many it would be construed as a part of a voluntary policy; that at home it would discourage

the friends of the Union, embolden its adversaries, and go far to insure to the latter a recognition abroad; that in fact it would be our National destruction consummated. This could not be allowed. Starvation was not yet upon the garrison; and ere it would be reached, Fort Pickens might be reinforced. This last would be a clear indication of policy, and would better enable the country to accept the evacuation of Fort Sumter as a Military necessity."

Owing to misconception or otherwise, an order to reinforce Fort Pickens was not carried out, and an expedition to relieve Fort Sumter was then ordered to be dispatched. On the 8th of April President Lincoln, by messenger, notified Governor Pickens of South Carolina, "that he might expect an attempt would be made to provision the fort; and that if the attempt should not be resisted there would be no effort to throw in men, arms, or ammunition, without further notice, or in case of an attack upon the fort."

A crisis was evidently approaching, and public feeling all over the Country was wrought up to the highest degree of tension and stood tip-toe with intense expectancy. The test of the doctrine of Secession was about to be made there, in the harbor of Charleston, upon which the eyes of Patriot and Rebel were alike feverishly bent.

There, in Charleston harbor, grimly erect, stood the octagon-shaped Fort Sumter, mid-way of the harbor entrance, the Stars and Stripes proudly waving from its lofty central flagstaff, its guns bristling on every side through the casemates and embrasures, as if with a knowledge of their defensive power.

About equidistant from Fort Sumter on either side of the harbor-entrance, were the Rebel works at Fort Moultrie and Battery Bee on Sullivan's Island, on the one side, and Cummings Point Battery, on Morris Island, on the other-besides a number of other batteries facing seaward along the sea-coast line of Morris Island. Further in, on the same side of the harbor, and but little further off from Fort Sumter, stood Fort Johnson on James Island, while Castle Pinckney and a Floating Battery were between the beleaguered Fort and the city of Charleston.

Thus, the Federal Fort was threatened with the concentrated fire of these well-manned Rebel fortifications on all sides, and in its then condition was plainly doomed; for, while the swarming Rebels, unmolested by Fort Sumter, had been permitted to surround that Fort with frowning batteries, whose guns outnumbered those of the Fort, as ten to one, and whose caliber was also superior, its own condition was anything but that of readiness for the inevitable coming encounter.

That the officers' quarters, barracks, and other frame-work wooden buildings should have been permitted to remain as a standing invitation to conflagration from bombardment, can only be accounted for on the supposition that the gallant officer in command, himself a Southerner, would not believe it possible that the thousands of armed Americans by whom he was threatened and encircled, could fire upon the flag of their own native Country. He and his garrison of seventy men, were soon to learn the bitter truth, amid a tempest of bursting shot and shell, the furnace-heat of crackling walls, and suffocating volumes of dense smoke produced by an uncontrollable conflagration.

The Rebel leaders at Washington had prevented an attack in January upon the forts in the harbor of Charleston, and at Pensacola.—[McPherson's History of the Rebellion, p. 112.]—In consequence of which failure to proceed to the last extremity at once, the energies of the Rebellion had perceptibly diminished.

Said the Mobile Mercury: "The country is sinking into a fatal apathy, and the spirit and even the patriotism of the people is oozing out, under this do-nothing policy. If something is not done pretty soon, decisive, either evacuation or expulsion, the whole country will become so disgusted with the sham of Southern independence that the first chance the people get at a popular election they will turn the whole movement topsy-turvy so bad that it never on Earth can be righted again."

After the inauguration of Mr. Lincoln, however, the Rebel authorities at Montgomery lost no time, but strained every nerve to precipitate War. They felt that there was danger to the cause of Secession in delay; that there were wavering States outside the Confederacy, like Virginia, that might be dragged into the Confederacy by prompt and bloody work; and wavering

States within, like Alabama, that must be kept in by similar means. Their emissaries were busy everywhere in the South, early in April, preaching an instant crusade against the old flag—inciting the people to demand instant hostilities against Fort Sumter—and to cross a Rubicon of blood, over which there could be no return.

Many of the Rebel leaders seemed to be haunted by the fear (no doubt well founded) that unless blood was shed—unless an impassable barrier, crimsoned with human gore, was raised between the new Confederacy and the old Union—there would surely be an ever-present danger of that Confederacy falling to pieces. Hence they were now active in working the people up to the required point of frenzy.

As a specimen of their speeches, may be quoted that of Roger A. Pryor, of Virginia, who, at Charleston, April 10, 1861, replying to a serenade, said:—[Charleston Mercury's report.]

'Gentlemen, I thank you, especially that you have at last annihilated this accursed Union [Applause] reeking with corruption, and insolent with excess of tyranny. Thank God, it is at last blasted and riven by the lightning wrath of an outraged and indignant people. [Loud applause.] Not only is it gone, but gone forever. [Cries of, 'You're right,' and applause.] In the expressive language of Scripture, it is water spilt upon the ground, which cannot be gathered up. [Applause.] Like Lucifer, son of the morning, it has fallen, never to rise again. [Continued applause.]

"For my part, gentlemen," he continued, as soon as he could be heard, "if Abraham Lincoln and Hannibal Hamlin to-morrow were to abdicate their offices and were to give me a blank sheet of paper to write the condition of re-annexation to the defunct Union, I would scornfully spurn the overture. * * * I invoke you, and I make it in some sort a personal appeal—personal so far as it tends to our assistance in Virginia—I do invoke you, in your demonstrations of popular opinion, in your exhibitions of official intent, to give no countenance to this idea of reconstruction. [Many voices, emphatically, 'never,' and applause.]

"In Virginia," resumed he, "they all say, if reduced to the dread dilemma of this memorable alternative, they will espouse the cause of the South as against the interest of the Northern Confederacy, but they whisper of

reconstruction, and they say Virginia must abide in the Union, with the idea of reconstructing the Union which you have annihilated. I pray you, gentlemen, rob them of that idea. Proclaim to the World that upon no condition, and under no circumstances, will South Carolina ever again enter into political association with the Abolitionists of New England. [Cries of 'never,' and applause.]

"Do not distrust Virginia," he continued; "as sure as tomorrow's sun will rise upon us, just so sure will Virginia be a member of this Southern Confederation. [Applause.] And I will tell you, gentlemen, what will put her in the Southern Confederacy in less than an hour by Shrewsbury clock—**STRIKE A BLOW!** [Tremendous applause.] The very moment that blood is shed, old Virginia will make common cause with her sisters of the South. [Applause.] It is impossible she should do otherwise."

The question of the necessity of "Striking a Blow"—of the immediate "shedding of blood"—was not only discussed before the Southern people for the purpose of inflaming their rebellious zeal, but was also the subject of excited agitation in the Confederate Cabinet at this time.

In a speech made by ex-United States Senator Clemens of Alabama, at Huntsville, Alabama, at the close of the Rebellion, he told the Alabamians how their State, which, as we have seen, was becoming decidedly shaky in its allegiance to the "Sham of Southern Independence," was kept in the Confederacy.

Said he: "In 1861, shortly after the Confederate Government was put in operation, I was in the city of Montgomery. One day (April 11, 1861) I stepped into the office of the Secretary of War, General Walker, and found there, engaged in a very excited discussion, Mr. Jefferson Davis (the President), Mr. Memminger (Secretary of the Treasury), Mr. Benjamin (Attorney-General), Mr. Gilchrist, a member of our Legislature from Loundes county, and a number of other prominent gentlemen. They were discussing the propriety of immediately opening fire on Fort Sumter, to which General Walker, the Secretary of War, appeared to be opposed. Mr. Gilchrist said to him, 'Sir, unless you sprinkle blood in the face of the people of Alabama, they will be back in the old Union in less than ten days!' **THE NEXT DAY GENERAL BEAUREGARD OPENED HIS**

BATTERIES ON SUMTER, AND ALABAMA WAS SAVED TO THE CONFEDERACY."

On the 8th of April, G. T. Beauregard, "Brigadier General Commanding" the "Provisional Army C. S. A." at Charleston, S. C., notified the Confederate Secretary of War (Walker) at Montgomery, Ala., that "An authorized messenger from President Lincoln has just informed Gov. Pickens and myself that provisions will be sent to Fort Sumter peaceably, or otherwise by force."

On the 10th, Confederate Secretary Walker telegraphed to Beauregard: "If you have no doubt of the authorized character of the agent who communicated to, you the intention of the Washington Government to supply Fort Sumter by force, you will at once demand its evacuation, and, if this is refused, proceed, in such manner as you may determine, to reduce it." To this Beauregard at once replied: "The demand will be made tomorrow at 12 o'clock." Thereupon the Confederate Secretary telegraphed again: "Unless there are special reasons connected with your own condition, it is considered proper that you should make the demand at an earlier hour." And Beauregard answered: "The reasons are special for 12 o'clock."

On the 11th General Beauregard notified Secretary Walker: "The demand was sent at 2 P. M., and until 6 was allowed for the answer." The Secretary desiring to have the reply of Major Anderson, General Beauregard telegraphed: "Major Anderson replies: 'I have the honor to acknowledge the receipt of your communication demanding the evacuation of this Fort, and to say in reply thereto that it is a demand with which I regret that my sense of honor and of my obligation to my Government prevent my compliance.' He adds, verbally, 'I will await the first shot, and, if you do not batter us to pieces, we will be starved out in a few days.'"

To this, the Confederate Secretary at once responded with: "Do not desire needlessly to bombard Fort Sumter. If Major Anderson will state the time at which, as indicated by himself, he will evacuate, and agree that, in the mean time, he will not use his guns against us unless ours should be employed against Fort Sumter, you are authorized thus to avoid the effusion of blood. If this or its equivalent be refused, reduce the Fort, as your judgment decides to be the most practicable."

At 11 o'clock that night (April 11) General Beauregard sent to Major Anderson, by the hands of his aides-de-camp, Messrs. Chesnut and Lee, a further communication, in which, after alluding to the Major's verbal observation, the General said: "If you will state the time at which you will evacuate Fort Sumter, and agree that in the mean time you will not use your guns against us unless ours shall be employed against Fort Sumter, we shall abstain from opening fire upon you. Col. Chesnut and Capt. Lee are authorized by me to enter into such an agreement with you. You are therefore requested to communicate to them an open answer."

To this, Major Robert Anderson, at 2.30 A.M. of the 12th, replied "that, cordially uniting with you in the desire to avoid the useless effusion of blood, I will, if provided with the necessary means of transportation, evacuate Fort Sumter by noon on the 15th inst., should I not receive prior to that time, controlling instructions from my Government, or additional supplies, and that I will not in the mean time open my fire upon your forces unless compelled to do so by some hostile act against this Fort or the flag of my Government, by the forces under your command, or by some portion of them, or by the perpetration of some act showing a hostile intention on your part against this Fort or the flag it bears." Thereupon General Beauregard telegraphed Secretary Walker: "He would not consent. I write to-day."

At 3.20 A.M., Major Anderson received from Messrs. Chesnut and Lee a notification to this effect: "By authority of Brigadier General Beauregard, commanding the Provisional Forces of the Confederate States, we have the honor to notify you that he will open the fire of his batteries on Fort Sumter in one hour from this time." And a later dispatch from General Beauregard to Secretary Walker, April 12, laconically stated: "WE OPENED FIRE AT 4.30."

At last the hour and the minute had come, for which the Slave Power of the South had for thirty years so impatiently longed. At last the moment had come, when all the long-treasured vengeance of the South—outgrown from questions of Tariff, of Slavery, and of Secession—was to be poured out in blood and battle; when the panoplied powers and forces of rebellious confederated States, standing face to face with the resolute patriotism of an outraged Union, would belch forth flame and fury and hurtling missiles upon the Federal Fort and the old flag floating o'er it.

And whose the sacrilegious hand that dared be first raised against his Country and his Country's flag? Stevens's mortar battery at Sullivan's Island is ready to open, when a lean, long-haired old man, with eyes blazing in their deep fanatical sockets, totters hastily forward and ravenously seizing in his bony hands a lanyard, pulls the string, and, with a flash and roar, away speeds the shrieking shell on its mission of destruction; and, while shell after shell, and shot after shot, from battery after battery, screams a savage accompaniment to the boom and flash and bellow of the guns, that lean old man works his clutched fingers in an ecstasy of fiendish pleasure, and chuckles: "Aye, I told them at Columbia that night, that the defense of the South is only to be secured through the lead of South Carolina; and, old as I am, I had come here to join them in that lead—and I have done it."

[Edmund Ruffin, see p. 100. This theory of the necessity of South Carolina leading, had long been held, as in the following, first published in the New York Tribune, July 3, 1862, which, among other letters, was found in the house of William H. Trescot, on Barnwell's Island, South Carolina, when re-occupied by United States troops:

"VIRGINIA CONVENTION, May 3, 1851

"My DEAR, SIR:—You misunderstood my last letter, if you supposed that I intended to visit South Carolina this Spring. I am exceedingly obliged to you for your kind invitations, and it would afford me the highest pleasure to interchange in person, sentiments with a friend whose manner of thinking so closely agrees with my own. But my engagements here closely confine me to this city, and deny me such a gratification.

"I would be especially glad to be in Charleston next week, and witness the proceedings of your Convention of Delegates from the Southern Rights Associations. The condition of things in your State deeply interests me. Her wise foresight and manly independence have placed her, as the head of the South, to whom alone true-hearted men can look with any hope or pleasure.

"Momentous are the consequences which depend upon your action. Which party will prevail? The immediate Secessionists, or those who are opposed to separate State action at this time? For my part I forbear to form a wish. Were I a Carolinian, it would be very different; but when I consider the serious effects the decision may have on your future weal or woe, I feel that a citizen of a State which has acted as Virginia, has no right to interfere, even by a wish.

"If the General Government allows you peaceably and freely to Secede, neither Virginia, nor any other Southern State, would, in my opinion, follow you at present. But what would be the effect upon South Carolina? Some of our best friends have supposed that it would cut off Charleston from the great Western trade, which she is now striking for, and would retard very greatly the progress of your State. I confess that I think differently. I believe thoroughly in our own theories, and that, even if Charleston did not grow quite as fast in her trade with other States, yet the relief

from Federal taxation would vastly stimulate your prosperity. If so, the prestige of the Union would be destroyed, and you would be the nucleus for a Southern Confederation at no distant day.

"But I do not doubt, from all I have been able to learn that the Federal Government would use force, beginning with the form most embarrassing to you, and least calculated to excite sympathy. I mean a naval blockade. In that event, could you stand the reaction feeling which the suffering commerce of Charleston would probably manifest? Would you not lose that in which your strength consists, the union of your people? I do not mean to imply an opinion, I only ask the question.

"If you could force this blockade, and bring the Government to direct force, the feeling in Virginia would be very great. I trust in God it would bring her to your aid. But it would be wrong in me to deceive you by speaking certainly. I cannot express the deep mortification I have felt at her course this Winter. But I do not believe that the course of the Legislature is a fair expression of popular feeling. In the East, at least, the great majority believes in the right of Secession, and feels the deepest sympathy with Carolina in her opposition to measures which they regard as she does. But the West—Western Virginia—there is the rub! Only 60,000 slaves to 494,000 whites! When I consider this fact, and the kind of argument which has been heard in this body, I cannot but regard with the greatest fear the question whether Virginia would assist Carolina in such an issue.

"I must acknowledge, my dear sir, that I look to the future with almost as much apprehension as hope. You will object to the term Democrat. Democracy, in its original philosophical sense, is indeed incompatible with Slavery and the whole system of Southern society. Yet, if you look back, what change will you find made in any of your State Constitutions, or in our legislation—that is, in its general course—for the last fifty years, which was not in the direction of this Democracy? Do not its principles and theories become daily more fixed in our practice? (I had almost said in the opinions of our people, did I not remember with pleasure the great improvement of opinion in regard to the abstract question of Slavery). And if such is the case, what are we to hope in the future? I do not hesitate to say that if the question is raised between Carolina and the Federal Government, and the latter prevails, the last hope of republican government, and, I fear, of Southern civilization, is gone. Russia will then be a better government than ours.

"I fear that the confusion and interruptions amid which I write have made this rather a rambling letter. Do you visit the North in the Summer? I would be very happy to welcome you to the Old Dominion.

"I am much obliged to you for the offer to send me Hammond's Eulogy on Calhoun, but I am indebted to the author for a copy.

"With esteem and friendship, yours truly,

"M. R. H. GARNETT.

"WM. H. TRESCOT, ESQ."]

Next morning's New York herald, in its Charleston dispatch of April 12, announced to the World that "The first shot [fired at Fort Sumter] from

Stevens's battery was fired by the venerable Edmund Ruffin, of Virginia," and added, "That ball will do more for the cause of Secession, in Virginia, than volumes of stump speeches."

"Soon," says Greeley in his History, "the thunder of fifty heavy breaching cannon, in one grand volley, followed by the crashing and crumbling of brick, stone, and mortar around and above them, apprized the little garrison that their stay must necessarily be short."

Says an eye-witness of the bombardment: "Shells burst with the greatest rapidity in every portion of the work, hurling the loose brick and stone in all directions, breaking the windows and setting fire to whatever woodwork they burst against. * * * The firing from the batteries on Cumming's Point was scattered over the whole of the gorge or rear of the Fort, till it looked like a sieve. The explosion of shells, and the quantity of deadly missiles that were hurled in every direction and at every instant of time, made it almost certain death to go out of the lower tier of casemates, and also made the working of the barbette or upper (uncovered) guns, which contained all our heaviest metal, and by which alone we could throw shells, quite impossible.

"During the first day there was hardly an instant of time that there was a cessation of the whizzing of balls, which were sometimes coming half a dozen at once. There was not a portion of the work which was not taken in reverse from mortars. * * * During Friday, the officers' barracks were three times set on fire by the shells and three times put out under the most galling and destructive cannonade.

"For the fourth time, the barracks were set on fire early on Saturday morning, and attempts were made to extinguish the flames; but it was soon discovered that red-hot shot were being thrown into the Fort with fearful rapidity, and it became evident that it would be impossible to put out the conflagration. The whole garrison was then set to work, or as many as could be spared, to remove the powder from the magazines, which was desperate work, rolling barrels of powder through the fire. * * * After the barracks were well on fire, the batteries directed upon Fort Sumter increased their cannonading to a rapidity greater than had been attained before."

"About this time, the shells and ammunition in the upper service-magazines exploded, scattering the tower and upper portions of the building

in every direction. The crash of the beams, the roar of the flames, and the shower of fragments of the Fort, with the blackness of the smoke, made the scene indescribably terrific and grand. This continued for several hours. * * * "

"There was not a portion of the Fort where a breath of air could be got for hours, except through a wet cloth. The fire spread to the men's quarters on the right hand and on the left, and endangered the powder which had been taken out of the magazines. The men went through the fire, and covered the barrels with wet cloths, but the danger of the Fort's blowing up became so imminent that they were obliged to heave the barrels out of the embrasures."

Major Anderson's official report tells the whole story briefly and well, in these words:

"STEAMSHIP BALTIC, OFF SANDY HOOK

"April 18, 1861, 10.30 A.M., VIA NEW YORK.

"Having defended Fort Sumter for thirty-four hours, until the quarters were entirely burnt, the main gates destroyed by fire, the gorge walls seriously injured, the magazine surrounded by flames, and its door closed from the effects of heat; four barrels and three cartridges of powder only being available, and no provisions remaining but pork, I accepted terms of evacuation offered by General Beauregard—being the same offered by him on the 11th inst., prior to the commencement of hostilities—and marched out of the Fort on Sunday afternoon, the 14th instant, with colors flying and drums beating, bringing away company and private property, and saluting my flag with fifty guns.

"ROBERT ANDERSON, "Major 1st Artillery, Commanding.

"HON. SIMON CAMERON, "Secretary of War, Washington."

During all this thirty-four hours of bombardment, the South rejoiced with exceeding great joy that the time had come for the vindication of its peculiar ideas of State and other rights, even though it be with flames and the sword. At Charleston, the people were crazy with exultation and wine-feasting and drinking being the order of the day and night. But for the surrender, Fort Sumter would have been stormed that Sunday night. As it was, Sunday was turned into a day of general jubilation, and while the people cheered and filled the streets, all the Churches of Charleston

celebrated, with more or less devotional fervor and ceremony, the bloodless victory.

At Montgomery, the Chiefs of the Confederate Government were serenaded. "Salvos of artillery were fired, and the whole population seemed to be in an ecstasy of triumph."—[McPherson's History of the Rebellion, p. 114]

The Confederate Secretary of War, flushed with the success, predicted that the Confederate flag "will, before the first of May, float over the dome of the old Capitol at Washington" and "will eventually float over Faneuil Hall, in Boston."

From Maryland to Mexico, the protests of Union men of the South were unheard in the fierce clamor of "On to Washington!"

The Richmond Examiner said: "There never was half the unanimity among the people before, nor a tithe of the zeal upon any subject, that is now manifested to take Washington. From the mountain tops and valleys to the shores of the sea, there is one wild shout of fierce resolve to capture Washington City at all and every human hazard."

So also, the Mobile Advertiser enthusiastically exclaimed:

"We are prepared to fight, and the enemy is not. Now is the time for action, while he is yet unprepared. Let the fife sound 'Gray Jackets over the Border,' and let a hundred thousand men, with such arms as they can snatch, get over the border as quickly as they can. Let a division enter every Northern border State, destroy railroad connection to prevent concentration of the enemy, and the desperate strait of these States, the body of Lincoln's country, will compel him to a peace—or compel his successor, should Virginia not suffer him to escape from his doomed capital."

It was on Friday morning, the 12th of April, as we have seen, that the first Rebel shot was fired at Fort Sumter. It was on Saturday afternoon and evening that the terms of surrender were agreed to, and on Sunday afternoon that the Federal flag was saluted and hauled down, and the surrender completed. On Monday morning, being the 15th of April, in all the great Northern Journals of the day appeared the following:

"PROCLAMATION.

"WHEREAS, the laws of the United States have been for some time past, and now are, opposed, and the execution thereof obstructed, in the States of South Carolina, Georgia, Alabama, Florida, Mississippi, Louisiana, and Texas, by Combinations too powerful to be suppressed by the ordinary course of Judicial proceedings, or by the powers vested in the Marshals by law; now, therefore I, ABRAHAM LINCOLN, President of the United States, in virtue of the power in me vested by the Constitution and the laws, have thought fit to call forth, and hereby do call forth, the Militia of the several States of the Union to the aggregate number of 75,000, in order to suppress said Combinations, and to cause the laws to be duly executed.

"The details for this object will be immediately communicated to the State authorities through the War Department. I appeal to all loyal citizens to favor, facilitate, and aid this effort to maintain the honor, the integrity, and existence of our National Union, and the perpetuity of popular government, and to redress wrongs already long enough endured. I deem it proper to say that the first service assigned to the forces hereby called forth, will probably be to repossess the forts, places, and property which have been seized from the Union; and in every event the utmost care will be observed, consistently with the objects aforesaid, to avoid any devastation, any destruction of, or interference with, property, or any disturbance of peaceful citizens of any part of the Country; and I hereby command the persons composing the Combinations aforesaid, to disperse and retire peaceably to their respective abodes, within twenty days from this date.

"Deeming that the present condition of public affairs presents an extraordinary occasion, I do hereby, in virtue of the power in me vested by the Constitution, convene both Houses of Congress. The Senators and Representatives are, therefore, summoned to assemble at their respective chambers at twelve o'clock, noon, on Thursday, the 4th day of July next, then and there to consider and determine such measures as, in their wisdom, the public safety and interest may seem to demand.

"In witness whereof I have hereunto set my hand, and caused the seal of the United States to be affixed.

"Done at the city of Washington, this fifteenth day of April, in the year of our Lord one thousand eight hundred and sixty-one, and of the independence of the United States the eighty-fifth.

"By the President: ABRAHAM LINCOLN.

"WILLIAM H. SEWARD, Secretary of State."

While in the North the official responses to this Call for troops were prompt and patriotic, in the Border and Slave States, not yet in Rebellion, they were anything but encouraging.

The reply of Governor Burton, of Delaware, was by the issue of a proclamation "recommending the formation of volunteer companies for the protection of the lives and property of the people of Delaware against

violence of any sort to which they may be exposed; the companies not being subject to be ordered by the Executive into the United States service—the law not vesting him with such authority—but having the option of offering their services to the General Government for the defense of its capital and the support of the Constitution and laws of the Country."

Governor Hicks, of Maryland, in like manner, issued a proclamation for Maryland's quota of the troops, but stated that her four regiments would be detailed to serve within the limits of Maryland—or, for the defense of the National Capital.

Governor Letcher, of Virginia, replied: "The militia of Virginia will not be furnished to the powers at Washington for any such use or purpose as they have in view. Your object is to subjugate the Southern States, and a requisition made upon me for such an object—an object, in my judgment, not within the purview of the Constitution or the Act of 1795—will not be complied with. You have chosen to inaugurate Civil War, and having done so, we will meet it in a spirit as determined as the Administration has exhibited toward the South."

Governor Ellis, of North Carolina, replied to Secretary Cameron: "Your dispatch is received, and, if genuine—which its extraordinary character leads me to doubt—I have to say in reply that I regard the levy of troops made by the Administration, for the purpose of subjugating the States of the South, as in violation of the Constitution and a usurpation of power. I can be no party to this wicked violation of the laws of the country, and to this War upon the liberties of a free people. You can get no troops from North Carolina. I will reply more in detail when your Call is received by mail."

Governor Magoffin, of Kentucky, replied: "Your dispatch is received. In answer I say emphatically, Kentucky will furnish no troops for the wicked purpose of subduing her sister Southern States."

Governor Harris, of Tennessee, replied: "Tennessee will not furnish a single man for Coercion, but fifty thousand, if necessary, for the Defense of our rights or those of our Southern brethren."

Governor Jackson, of Missouri, replied: "Your requisition is illegal, unconstitutional, revolutionary, inhuman, diabolical and cannot be complied

with."

Governor Rector, of Arkansas, replied: "None will be furnished. The demand is only adding insult to injury."

Discouraging and even insulting as were most of these replies, the responses of the Governors of the Free States were, on the other hand, full of the ring of true martial Patriotism evoked by the fall of Sumter and the President's first call for troops. Twenty millions of Northern hearts were stirred by that Call, as they had never before been stirred. Party and faction became for the moment, a thing of the past.

The Governors of the Free States made instant proclamation for volunteers, and the People responded not by thousands but by hundreds of thousands. New York, the Empire State, by her Governor and her Legislature placed all her tremendous resources at the service of the Union; and the great State of Pennsylvania, through Governor Curtin, did the same. Nor were the other States at all behind.

The Loyal North felt that Law, Order, Liberty, the existence of the Nation itself was in peril, and must be both saved and vindicated. Over half a million of men—from the prairies of the West and the hills and cities of the East—from farms and counting houses, from factories and mines and workshops—sprang to arms at the Call, and begged to be enrolled. The merchants and capitalists throughout the North proffered to the Government their wealth and influence and best services. The press and the people responded as only the press and people of a Free land can respond—with all their heart and soul. "Fort Sumter," said one of the journals, "is lost, but Freedom is saved. Henceforth, the Loyal States are a unit in uncompromising hostility to Treason, wherever plotted, however justified. Fort Sumter is temporarily lost, but the Country is saved. Live the Republic!"

This, in a nutshell, was the feeling everywhere expressed, whether by the great crowds that marched through the streets of Northern cities with drums beating and banners flying—cheering wildly for the Union, singing Union songs, and compelling those of doubtful loyalty to throw out to the breeze from their homes the glorified Stars and Stripes—by the great majority of newspapers—by the pulpit, by the rostrum, by the bench, by all of whatever

profession or calling in Northern life. For the moment, the voice of the Rebel-sympathizer was hushed in the land, or so tremendously overborne that it seemed as if there was an absolute unanimity of love for the Union.

Of course, in Border-States, bound to the South by ties of lineage and intermarriage and politics and business association, the feeling could not be the same as elsewhere. There, they were, so to speak, drawn both ways at once, by the beckoning hands of kindred on the one side, and Country on the other! Thus they long waited and hesitated, praying that something might yet happen to save the Union of their fathers, and prevent the shedding of brothers' blood, by brothers—hoping against hope-waited, in the belief that a position of armed neutrality might be permitted to them; and grieved, when they found this could not be.

Each side to the great Conflict-at-arms naturally enough believed itself right, and that the other side was the first aggressor; but the judgment of Mankind has placed the blame where it properly belonged—on the shoulders of the Rebels. The calm, clear statement of President Lincoln, in his July Message to Congress, touching the assault and its preceding history—together with his conclusions—states the whole matter in such authentic and convincing manner that it may be said to have settled the point beyond further controversy. After stating that it "was resolved to notify the Governor of South Carolina that he might expect an attempt would be made to provision the Fort; and that if the attempt should not be resisted there would be no effort to throw in men, arms, or ammunition, without further notice, or in case of an attack on the Fort," Mr. Lincoln continues: "This notice was accordingly given; whereupon the Fort was attacked and bombarded to its fall, without even awaiting the arrival of the provisioning expedition."

The President then proceeds: "It is thus seen that the assault upon and reduction of Fort Sumter was, in no sense, a matter of self-defense on the part of the assailants. They well knew that the garrison in the Fort could, by no possibility, commit aggression upon them. They knew—they were expressly notified—that the giving of bread to the few brave and hungry men of the garrison was all which would on that occasion be attempted, unless themselves, by resisting so much, should provoke more. They knew that this Government desired to keep the garrison in the Fort—not to assail

them—but merely to maintain visible possession, and thus to preserve the Union from actual and immediate dissolution—trusting, as hereinbefore stated, to time, discussion, and the ballot-box for final adjustment; and they assailed and reduced the Fort for precisely the reverse object—to drive out the visible authority of the Federal Union, and thus force it to immediate dissolution.

"That this was their object, the Executive well understood; and, having said to them, in the Inaugural Address, 'you can have no conflict without being yourselves the aggressors,' he took pains not only to keep this declaration good, but also to keep the case so free from the power of ingenious sophistry as that the World should not be able to misunderstand it.

"By the affair at Fort Sumter, with its surrounding circumstances, that point was reached. Then and thereby the assailants of the Government began the Conflict of arms, without a gun in sight or in expectancy to return their fire, save only the few in the Fort sent to that harbor years before for their own protection, and still ready to give that protection in whatever was lawful. In this act, discarding all else, they have forced upon the Country, the distinct issue: 'Immediate dissolution or blood.'

"And this issue embraces more than the fate of these United States. It presents to the whole family of Man the question whether a Constitutional Republic or Democracy—a government of the People by the same People—can or cannot maintain its territorial integrity against its own domestic foes. It presents the question whether discontented individuals, too few in numbers to control administration according to organic law in any case, can always, upon the pretences made in this case, or on any other pretences, or arbitrarily without any pretence, break up their Government, and thus practically put an end to free government upon the earth. It forces us to ask: 'Is there in all republics, this inherent and fatal weakness?' 'Must a Government of necessity be too strong for the liberties of its own people, or too weak to maintain its own existence?'

"So viewing the issue, no choice was left but to call out the War power of the Government; and so to resist force, employed for its destruction, by force, for its preservation."

The Call for Troops was made, as we have seen, on the 15th day of April. On the evening of the following day several companies of a Pennsylvania Regiment reported for duty in Washington. On the 18th, more Pennsylvania Volunteers, including a company of Artillery, arrived there.

On the 19th of April, the Sixth Massachusetts Regiment—whose progress through New York city had been triumphal—was suddenly and unexpectedly assailed, in its passage through Baltimore, to the defense of the National Capital, by a howling mob of Maryland Secessionists—worked up to a pitch of States-rights frenzy by Confederate emissaries and influential Baltimore Secession-sympathizers, by news of the sudden evacuation of the Federal Arsenal at Harper's Ferry, and other exciting tidings—and had to fight its way through, leaving three soldiers of that regiment dead, and a number wounded, behind it.

[At a meeting of the "National Volunteer Association," at Monument Square, Baltimore, the previous evening, says Greeley's History of the American Conflict, page 462, "None of the speakers directly advocated attacks on the Northern troops about to pass through the city; but each was open in his hostility to 'Coercion,' and ardently exhorted his hearers to organize, arm and drill, for the Conflict now inevitable. Carr (Wilson C. N. Carr) said: 'I do not care how many Federal troops are sent to Washington; they will soon find themselves surrounded by such an army from Virginia and Maryland, that escape to their homes will be impossible; and when the 75,000 who are intended to invade the South shall have polluted that soil with their touch, the South will exterminate and sweep them from the Earth.' (Frantic cheering and yelling). The meeting broke up with stentorian cheers for 'the South' and for 'President Davis.'"]

Ten companies of Philadelphia troops, reaching Baltimore at the same time, unarmed, were also violently assailed by the crazy mob, and, after a two hours' fight, reached the cars and returned to Philadelphia.

Washington City—already, by the Secession of Virginia, cut off from the South—was thus practically cut off from the North as well; and to isolate it more completely, the telegraph wires were cut down and the railroad bridges burned. A mere handful of regulars, the few volunteers that had got through before the outbreak in Baltimore, and a small number of Union residents and Government department clerks—these, under General Winfield Scott, constituted the paltry force that, for ten days after the Call for troops, held the National Capital.

Informed, as the Rebels must have been, by their swarming spies, of the weakness of the Federal metropolis, it seems absolutely marvelous that instant advantage was not taken of it.

The Richmond Examiner, of April 23d, said: "The capture of Washington City is perfectly within the power of Virginia and Maryland, if Virginia will only make the effort with her constituted authorities; nor is there a single moment to lose. * * * The fanatical yell for the immediate subjugation of the whole South is going up hourly from the united voices of all the North; and, for the purpose of making their work sure, they have determined to hold Washington City as the point whence to carry on their brutal warfare. Our people can take it—they will take it—and Scott, the arch-traitor, and Lincoln, the Beast, combined, cannot prevent it. The just indignation of an outraged and deeply injured people will teach the Illinois Ape to repeat his race and retrace his journey across the borders of the Free Negro States still more rapidly than he came. * * * Great cleansing and purification are needed and will be given to that festering sink of iniquity, that wallow of Lincoln and Scott—the desecrated city of Washington; and many indeed will be the carcasses of dogs and caitiff that will blacken the air upon the gallows before the great work is accomplished. So let it be!"

But despite all this fanfaronade of brutal bluster, and various movements that looked somewhat threatening, and this complete isolation for more than a week from the rest of the World, the city of Washington was not seized by the Rebels, after all.

This nervous condition of affairs, however, existed until the 25th—and to General Benjamin F. Butler is due the chief credit of putting an end to it. It seems he had reached the Susquehanna river at Perryville, with his Eighth Massachusetts Regiment on the 20th—the day after the Sixth Massachusetts had been mobbed at Baltimore—and, finding his further progress to Washington via Baltimore, barred by the destruction of the bridge across the Susquehanna, etc., he at once seized a large ferry steamer, embarked his men on her, steamed down the river and Chesapeake Bay to Annapolis, the capital of Maryland, took possession of the frigate Constitution, the Naval Academy, and the city itself, gathered supplies, and being reinforced by the arrival by water of the famous New York Seventh, and other regiments, repaired the branch railroad to Annapolis Junction (on the main line of

railroad between Baltimore and Washington), and transferred his column from thence, by cars, on the 25th, to the National Capital—soon thereafter also taking military possession of Baltimore, which gave no further trouble to the Union Cause. In the meantime, however, other untoward events to that Cause had happened.

Two days after the Call for troops, the Virginia Convention (April 17th) secretly voted to Secede from the Union. An expedition of Virginia troops was almost at once started to capture the Federal Arsenal at Harper's Ferry, which, as has already been intimated, was evacuated hastily on the night of the 18th, by the handful of Union regulars garrisoning it, after a futile effort to destroy the public property and stores it held. Another expedition was started to seize the Federal Navy Yard at Norfolk—a rich prize, containing as it did, between 2,000 and 3,000 pieces of heavy ordnance (300 of them Dahlgrens), three old line-of-battle ships and a number of frigates, including the Cumberland and the fine forty-gun steam frigate Merrimac, together with thousands of kegs of powder and immense stores of other munitions of war, and supplies—that had cost in all some \$10,000,000. Without an enemy in sight, however, this fine Navy Yard was shamefully evacuated, after partly scuttling and setting fire to the vessels—the Cumberland alone being towed away—and spiking the guns, and doing other not very material damage.

So also, in North Carolina, Rebel influence was equally active. On the 20th of April Governor Ellis seized the Federal Branch Mint at, Charlotte, and on the 22d the Federal Arsenal at Fayetteville. A few days thereafter his Legislature authorized him to tender to Virginia—which had already joined the Confederacy—or to the Government of the Confederate States itself, the volunteer forces of North Carolina. And, although at the end of January the people of that State had decided at the polls that no Secession Convention be held, yet the subservient Legislature did not hesitate, on demand, to call one together which met in May and ordained such Secession.

Thus, by the end of May, 1861, the Confederacy had grown to comprise nine instead of seven States, and the Confederate troops were concentrating on Richmond—whither the Rebel Government was soon to remove, from Montgomery.

By this time also not only had the ranks of the regular Union Army been filled and largely added to, but 42,000 additional volunteers had been called out by President Lincoln; and the blockade of the Southern ports (including those of Virginia and North Carolina) that had been proclaimed by him, was, despite all obstacles, now becoming effectual and respected.

Washington City and its suburbs, by the influx of Union volunteers, had during this month become a vast armed camp; the Potomac river had been crossed and the Virginia hills (including Arlington heights) which overlooked the Federal Capital, had been occupied and fortified by Union troops; the young and gallant Colonel Ellsworth had been killed by a Virginia Rebel while pulling down a Rebel flag in Alexandria; and General Benjamin F. Butler, in command at Fortress Monroe, had by an inspiration, solved one of the knottiest points confronting our armies, by declaring of three Negroes who had fled from their master so as to escape working on Rebel fortifications, that they should not be returned to that master—under the Fugitive Slave Law, as demanded by a Rebel officer with a flag of truce—but were confiscated "property," and would be retained, as "contraband of war."

It was about this time, too, that the New Orleans Picayune fell into line with other unscrupulous Rebel sheets, by gravely declaring that: "All the Massachusetts troops now in Washington are Negroes, with the exception of two or three drummer boys. General Butler, in command, is a native of Liberia. Our readers may recollect old Ben, the barber, who kept a shop in Poydras street, and emigrated to Liberia with a small competence. General Butler is his son." Little did the writer of that paragraph dream how soon New Orleans would crouch at the very feet of that same General!

And now, while the armed hosts on either side are assembling in hostile array, or resting on their arms, preliminary to the approaching fray of battle, let us glance at the alleged causes underlying this great Rebellion against the Union.

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